

Allegations of Family Violence in Court: How Parental Alienation Affects Judicial Outcomes

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We tested a set of findings reported by Meier et al. (2019) related to the use of parental alienation as a legal defense in cases in which there are allegations of domestic violence and child abuse. A total of 967 appellate reports in which PA was found or alleged were sequentially selected from a legal database search. Nineteen research assistants blind to the study's hypotheses coded the reports for the variables used to test six preregistered hypotheses using a series of logistic and linear regression models. We failed to find any support for the conclusions made by Meier et al. Parents found (vs. alleged) to have alienated their children, regardless of their gender, had greater odds of losing parenting time, losing custody of their children, and losing their case. These findings held even when the accusing parent had been found to have been abusive. Losses or decreases in custody were not found when the (alleged) alienated parent was found to have been abusive. Results indicate that the majority of courts carefully weigh allegations of all forms of family violence in their determinations about the best interests of children. These findings, along with several others, raise concerns that the methodological, analytical, and statistical problems we detail about Meier's report that make her conclusions untrustworthy. Discussion focuses on the importance of using open science practices for transparent and rigorous empirical testing of hypotheses and the dangers of misusing scientific findings to mislead influential professionals who affect the well-being of millions of families.

Keywords: parental alienation, child abuse, domestic violence, child custody, judicial decision-making

Parental alienation (PA) refers to a mental condition in which a child allies strongly with one parent and rejects a relationship with the other parent without legitimate justification (Bernet & Loran-

dos, 2020). PA is an outcome of what some scholars have considered a form of family violence (Harman et al., 2018) that is characterized by the perpetration of parental alienating behaviors by an alienating parent (e.g., derogating the alienated parent; Baker & Darnall, 2006; Harman & Matthewson, 2020). Although parental alienating behaviors are a primary cause of the child's alienation, they are not always the only source. For example, children may adopt and then share the alienating parent's negative attitudes, making them active participants in the rejection of the alienated parent (e.g., Warshak, 2003), and institutions and social systems may contribute to the problem with prolonged response times to violations of court orders or a failure to recognize and intervene when the problem is present (Harman et al., 2018). Parental alienating behaviors are very harmful to children and their extended family members (Dijkstra, 2019; Harman et al., 2018; von Boch-Galhau, 2018), which has led to a call for action for more research and interventions that employ a child protection response to the problem (Harman et al., 2018; Kruk, 2018).

Despite over three decades of research that have led to what is considered a scientific maturing, or "greening," of the field and understanding of PA (Harman, Bernet, & Harman, 2019, p. 1), there remain some vocal opponents to recognizing PA as a form of family violence. These opponents have referred to PA as being based on junk science (Faller, 1998; Silberg, 2013; Silberg & Dallam, 2019), a "pseudoscientific" theory (Meier et al., 2019, p. 3), as being a justified dislike for a parent and no different from estrangement (Houlst, 2018) and as being ambiguous and not diagnosable (Scott & Emery, 1987). PA theory has also been de-

This article was published Online First December 14, 2020.

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No external funding was received for this project. We thank Amanda Sharples for aiding with the statistical interpretation of the analyses and feedback. We would also like to thank the many undergraduate research assistant coders who were involved with the project: Davien Torres, Alondra Faudoa, Savannah Abbott, Akshira Weiser, Andrew Wilmont, Kylie Morse, Lauren Quintana, Maddie Foster, Alexander Van Sertima, Megan Keller, Emily Story, Jedediah Knode, Simone Yin, Tayla Wilson, Katie Regan, Ellie Stavropoulos, Lindsay Walker, Jordyn Alturafi, Amelia Hadad, and Breanna King. Finally, we thank the law office and PsychLaw team coders: Bruce Bielawa, Shamara Boines, Raphael Dominguez, Gabriel Hinman, LeAnn Scott, and Sarah Vasquez as well as PsychLaw research attorney Melissa Blevins and paralegal Elle Murphree. Results from this project have not yet been disseminated or made publicly available at the time of this writing. The authors have no conflicts of interest to report. All project materials for this study are available on the Open Science Framework: https://osf.io/j9bh5/?view_only=fc6a8223317745e59fc7058543185058

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scribed as a legal strategy used by abusive parents (typically fathers) to obtain custody of their children (Meier et al., 2019; Silberg, 2013). Other scholars have argued that these claims made by opponents have been largely unsubstantiated, presented as strawman arguments, are supported by methodologically flawed research (see as examples Baker, 2020; Haines et al., 2020; Harman, Bernet, & Harman, 2019), and have hindered progress to address a serious public health problem (Vezzetti, 2016; von Boch-Galhau, 2020).

Joan Meier and colleagues (2019) have claimed that PA legal defenses serve to nullify the abuse concerns of mothers, even in the face of expert child abuse evaluations (p. 2). To support their position, the authors presented a review of over 2,000 trial and appellate court rulings published over a 10-year period in a law school research paper series that does not appear to be peer-reviewed. The authors stated that their paper brought “neutral empirical data” to bear on the controversy about

whether and to what extent it is true that courts are disbelieving abuse claims and removing custody from parents claiming abuse, whether and to what extent gender impacts these findings, and how cross-claims of parental alienation affect courts’ treatment of mothers’ and fathers’ abuse claims. (p. 4)

Meier et al. reported that mothers who claimed their children were abused were more likely to lose custody of their children and their legal cases than were fathers. They also stated that their hypotheses were supported in their data because fathers who claimed they were alienated were more likely to get custody of their children, even if they were proven to be abusive (p. 15).

After careful inspection of the Meier et al. (2019) research paper, we identified at least 30 conceptual and methodological problems with the design and analyses of the study that make the results and the conclusions drawn dubious at best. The severity of these methodological and analytical problems raises the concern that Meier et al.’s research paper is being used as a “woozle,” which is a belief or claim that has been repeatedly cited and presented in misleading ways (Nielsen, 2014, p. 164). For this article, we first describe the ways that the Meier et al. paper is being used as a woozle. We then detail the conceptual, methodological, design, and analytic problems of their study, and finally, we will present the results of a preregistered, transparent, and methodologically rigorous study designed to test some of findings related to PA as reported by Meier et al.

Woozling

Woozles are faulty, partial, or misinterpreted research claims that can be used to mislead professionals and others working with families (Nielsen, 2015). These woozles are not supported or are only partially supported by empirical evidence (Gelles, 1980), and they are created by a constellation of factors such as the misrepresentation of others’ data and confirmation bias (Nielsen, 2014). We share Nielsen’s concern that many woozles are ideologically motivated, magnified, and widely disseminated such that they overshadow studies that challenge them (Nielsen, 2015).

In the research paper, Meier et al. (2019) made many inaccurate and misleading statements that have the potential to woozle scientifically naïve audiences. In media reports, Meier et al. appears to be woozling by minimizing or failing to discuss the limitations

of her report (Bonessi, 2019; Johnston, 2007; Schmidt, 2019). An underlying assumption that is repeatedly cited throughout the report is the premise that the concept of PA “was created specifically as a rationale for rejecting child sexual abuse claims” (p. 14). This statement is a misrepresentation of the works of Richard Gardner, who originally coined the term “parental alienation syndrome” (PAS; later simplified to PA; Gardner, 1985). Gardner noted that when children are being alienated from a parent, false allegations of abuse are often used to harm their relationship (Gardner, 1987), although in the majority of cases in which he found PAS to be present, a sex-abuse accusation was *not* alleged (Gardner, 1998). At the time Gardner’s (1985) seminal work was published, the American Academy of Child and Adolescent Psychiatry (1988) also noted stark increases in allegations of child sexual abuse, raising concerns that allegations should not always be accepted as true, particularly during child custody disputes. Gardner never recommended applying the PAS term if there was bona fide child abuse by the rejected parent (Gardner, 1985, 1987), and evidence-based assessments continue to require that child abuse be ruled out as a cause for the child’s rejection of a parent for PA to be diagnosed (Baker et al., 2014; Freeman, 2020).

When Gardner’s original work (Gardner, 1985) was published, it was not received well by child abuse advocates who held the belief that children never lie about abuse (Rand, 2013). Child sexual abuse was portrayed by critics as being an essential feature of PAS (Faller, 1998). Even in the face of decades of research documenting support for his original work (see Rand, 2013), critics have still chosen to misrepresent Gardner’s work (e.g., Bruch, 2001). Without citing evidence to support their claim that the concept of PA was created to reject child abuse claims, Meier et al. (2019) implied that Gardner and other scholars who pioneered the concept had malignant motives, which is tantamount to an ad hominem attack. Meier et al. claimed that their research findings provide evidence to support this misrepresentation of PA, despite many methodological flaws that make the validity of the work questionable and have prompted us to conduct the current study.

The way Meier and colleagues (2019) discuss the “crediting” of abuse claims throughout the report reflects an alignment with critics that all claims of abuse made by children or “protective parents” should be believed (p. 11). The authors fail to acknowledge studies that indicate parents, regardless of gender, often make false claims of abuse to gain a custody advantage (Clawar & Rivlin, 2013; Dunne & Hedrick, 1994; Harman et al., 2018; Harman & Matthewson, 2020; Hines & Douglas, 2016). For example, a thorough analysis of 7,672 child maltreatment investigation cases found that one third of the investigations were unsubstantiated, and the proportion of allegations shown to be fabricated was 12% in cases where a contact or residence dispute had occurred (Trocmé, & Bala, 2005). Ceci and Bruck (1995) also reported around half of abuse allegations in divorce are probably false. Despite this research, Meier and colleagues cited a paper where child sexual abuse claims made in custody litigation are *likely* valid more than half the time (p. 10; see Faller, 1998, but see Bielaska v. Orley, 1996). Nevertheless, this data document that a large proportion of allegations are still false. Meier et al. never addressed the fact that the parents in her data set may have been lying about abuse, which is a parental alienating behavior (Baker & Darnall, 2006; Harman & Matthewson, 2020).

To further matters, [Meier et al. \(2019\)](#) reported that guardians ad litem (GALs) and custody evaluators were not likely to credit mothers abuse claims (pp. 20–21) and need to be educated to “deconstruct misconceptions” about the use of PA claims when child abuse is alleged by mothers (p. 26). This position implies that all claims of abuse made by mothers should be taken at face value and fails to acknowledge that these third parties have had access to considerably more information than what is reported in the judicial reports the research team reviewed. These third parties may have concluded that allegations made by the accusing parent were not substantiated and were, instead, strategies used to obtain a custody advantage. When GALs or custody evaluators reject an abuse claim, this is not necessarily an indication they are untrained or biased. The data presented by Meier et al. does not support such a conclusion.

[Meier et al. \(2019\)](#) also utilized consensus effects to woozle the reader into placing faith in their findings. For example, the authors stated that protective parents and their attorneys have claimed that GALs and custody evaluators fail to recognize abuse, yet no references were cited to support this statement. The portrayal that “consensus” and “many experts” believe something based on anecdotal evidence makes it appear to the reader that there is general agreement on a topic when there is not ([Nielsen, 2015](#), p. 599). In addition, Meier et al. woozle the reader into believing that some of their findings were statistically significant when they were not, such as highlighting in bold numerous results for which there were no odds ratios presented (and thus not statistically significant; see p. 19 footnote).

Finally, [Meier et al. \(2019, p. 26\)](#) went well beyond their limited data to suggest recommendations that “warrant action,” which is a woozling strategy that entails making policy recommendations by relying on one or a few studies and ignoring other relevant research on the topic ([Nielsen, 2014, 2015](#)). The authors stated that courts and affiliated personnel need to be “educated” about their findings that alienation theory plays a “significant role in the denial of child abuse claims” (p. 26), that child protection workers need to stop discrediting claims of abuse made by mothers in child custody disputes (p. 26), and that the U.S. Congress should amend the Child Abuse Protection Act (CAPTA) so that the application of PA theory is prohibited (p. 27).

Given [Meier et al.’s \(2019\)](#) call to action that could affect many influential individuals in institutions that make decisions affecting families (e.g., legislators), it is imperative that a transparent and rigorous test of their hypotheses be conducted to determine whether the findings they reported can be substantiated. To accomplish this task, we first identified 30 conceptual, methodological, and analytic flaws in the research paper and considered how the flaws may have impacted the validity and reliability of the authors’ findings and conclusions. We then developed a new method and analytic plan that would accurately test the study’s hypotheses and overcome the limitations of their study. Below, we briefly describe the flaws we identified and refer the reader to [Table 1](#) for a more thorough description of each and how our study was designed to address them.

Selection of Cases

One of the most striking problems with [Meier et al.’s \(2019\)](#) research paper is how the legal cases for two data sets were

selected, leading to what may be a “cherry-picked” sample that is stacked in favor of the hypotheses that were described. There was a lack of transparency about the search terms used to select cases and processes by which they were developed in the original paper. The inclusion and exclusion criteria for the cases appeared biased because the Meier team deliberately selected the “cleanest” and most “paradigmatic” cases involving abuse and alienation ([Meier et al. 2019](#), p. 7). The Meier et al. paper also notes that a large number of cases that reflect a significant proportion of postdecree appellate cases, such as cases where both parents claimed the other was abusive, were excluded. There were no details provided about the coders who selected the cases and how they were trained. In addition, some trial-level cases were included in the database, with no information about whether they were tied to appellate-level judgments made for the same case, which would violate assumptions of independence of the data in the analyses.

For the current study, we provide clear details about the search terms used. The same cases may have appeared in both of [Meier et al.’s \(2019\)](#) data sets, so our database contains only cases where PA was at issue or raised as a concern because all our hypotheses pertain to this situation. We did not exclude cases regarding custody disputes, relocation issues, joint custody, mutual claims of abuse, third party abuse allegations, nonspecific abuse cases, and aka cases (which [Meier et al., 2019](#), described as cases where parental alienating behaviors are described), because we felt it important for the database to contain the full spectrum of cases in which PA was alleged or found so that our findings would have greater external validity. We also did not include trial-level cases that could be related to the appellate cases to prevent violations of independence of the data.

Coding of the Data Set

No details were provided by [Meier et al. \(2019\)](#) as to who was responsible for coding the two data sets presented in their paper, how discrepancies were resolved, or their methods used to ensure accuracy. Clear definitions of the codes were also lacking, and it was unclear how some codes were determined. For example, Meier et al. did not describe in their research paper how they coded multiple allegations of abuse from the same case, because only information about whether there was a claim made was reported. For our study, we provide full details about our codebook and who our coders were, and we employed quality checks to ensure that they were blind to hypotheses before and after coding the appellate cases. We followed a strict calibration protocol for training on the use of the codebook, have all materials publicly accessible on the Open Science Framework (OSF; e.g., raw coding sheets, the codebook), and provide details on how discrepancies were resolved. Meier et al. also stated that corroborations of abuse in their coding included arrests, protection orders, and prosecutions, without considering the possibility that the parent may later have been found innocent of their allegations. We utilized stringent criteria in our coding manual as to what was determined by the court and other investigating authorities (e.g., police, child protection workers) to be actual abuse. Such a finding would not imply biases by the court as Meier et al. claimed, if the judgments were made based on the preponderance of evidence presented.

Table 1*Methodological Flaws of the Meier et al. (2019) Research Paper and Remedies Implemented in the Current Study*

Issue and identified flaw	Problem with the flaw	Remedy
Hypotheses		
Hypotheses were not explicitly detailed prior to the presentation of the results.	Failure to explicitly describe hypotheses a priori casts doubt about whether the researcher engaged in HARKing behaviors (e.g., see Murphy & Aguinis, 2019), making her hypotheses exploratory rather than confirmatory. Consequently, the researcher may have created hypotheses <i>after</i> finding statistically significant effects, which may have been statistical artifacts or false positives.	All hypotheses tested were preregistered on the Open Science Framework prior to data coding and analysis.
Several hypotheses were tested without any theoretical or practical rationale detailed in the introduction.	By not detailing why particular relationships were tested in the data, there were concerns that the researcher engaged in cherry-picking and “fishing” the data for statistically significant effects that aligned with the goals of the researcher and create confirmation biases.	The rationale for this study’s hypotheses was to determine whether we could find support for findings reported by Meier et al. One added hypothesis was included and the justification for testing it was provided.
Selection of cases		
Failure to provide information about the different search engines and databases used to “test” search strings.	It was unclear which search engines were used and what search strings were tested at this stage and why ultimately LEXIS was selected over the other search engines. Lack of transparency makes replication impossible and may reflect a bias in the selection of the search engine that produced the desired outcomes.	The cases were selected from the Westlaw (Thomson Reuters) database.
Failure to provide in the paper the database search string of “over 10 lines of search terms” that were “constructed and applied” (p. 5). ^a	The final search string was not provided. The author did not define what “constructed” and “applied” meant in this context. Lack of transparency makes replication impossible and may reflect a bias in the selection of cases.	The complete search string used is provided.
No information was provided about the coders who “triaged” the initial search cases.	It was unclear what training the coders had and whether they were blind to the study’s hypotheses. The coders may have been biased in their selection of cases if they knew about the study’s hypotheses and inaccurate in their classification of cases without training and oversight.	Full details about the research assistants’ training, oversight, and measures taken to ensure they were blind to the study’s hypotheses are provided.
Cases in which the parents were of the same sex were excluded from the database.	Same-sex parents are just as likely to be alienated from their children as are those of different sexes (Harman, Leder-Elder, & Biringen, 2019), and there is no justification for why these cases were excluded. Gender biases toward parents in same-sex couples can occur, so excluding these cases results in a sample that is not representative of all the cases that may be heard at the appellate level. ^b	Appellate case reports were not excluded if the parents in the case were the same sex.
Only cases that had three core outcomes were included in the sample: crediting of abuse, custody outcomes, and “wins.”	This sample restriction served to eliminate cases in which courts were addressing visitation (e.g., violations of parenting time), joint custody, and relocation matters, which are often legal interventions for parental alienating behaviors (Harman & Matthewson, 2020). The final sample was not representative of complex cases heard by appellate-level courts, making the generalizability of the findings limited and potentially biased because they were selected to match what Meier herself considered the “paradigmatic” and “clean” cases involving abuse and parental alienation.	Cases that pertained to visitation, joint custody, and relocation matters were not eliminated from the sample.
Cases with “third party victims” such as a new or old romantic partner, “mutual abuse” cases, “non-specific” abuse claims, and “AKA” cases, which were cases involving negative parenting behaviors, which are “similar” in analysis to PA cases, were excluded.	The only rationale for excluding these cases was to have the most “paradigmatic” and “clean” cases involving abuse and parental alienation. Excluding all these cases (1,987 of them) potentially biases the sample and may lead to false conclusions that cannot be generalized beyond the data Meier et al. selected.	Cases that pertain to third party victims of abuse, mutual abuse cases, nonspecific abuse claims, and aka cases, were not eliminated from the sample.

(table continues)

Table 1 (*continued*)

Issue and identified flaw	Problem with the flaw	Remedy
No information was provided about the coders who excluded cases at the inclusion or exclusion stage.	It is unclear what training the coders had and whether they were blind to the study's hypotheses. The coders may have been biased in their exclusion of cases if they knew the study's hypotheses and inaccurate in their classification of cases without training and oversight.	Full details about the research assistants' training, oversight, and measures taken to ensure they were blind to the study's hypotheses are provided.
An expanded data set of all abuse claims was created, without details of the search terms or search engine used.	It is unclear which search engine and search strings were used. Lack of transparency makes replication impossible and may reflect a bias in the selection of cases. ^c	No "pure abuse" data set was created for this study because the hypotheses tested are regarding only cases where parental alienation was raised as an issue.
Extrafamilial abuse cases were included in the "all abuse" data set but were excluded in the "analytic data set."	By excluding extrafamilial cases in one data set but including them in another, the two databases become incomparable.	No extrafamilial abuse cases were excluded from our database.
The degree of overlap between the "all abuse" and "analytic database" was not described. ^c	The two data sets both contained PA cases (p. 19), so it is likely that some of the same cases may have appeared in both sets of analyses. Results presented for the two data sets may have duplicate cases, making the findings redundant to some degree and not independent.	Only one database using cases in which parental alienation was raised as an issue was created.
There was a lack of clarity about how "non-alienation" and "pure alienation" cases were identified and how the final numbers for each were determined.	No details were provided about the individuals responsible for classifying cases as "non-alienation" and "pure alienation," so it is unclear what their training was or their understanding of the study's hypotheses. The numbers of cases for each category also do not directly match the number of cases reported as being included in the final samples. Replication of this categorization step is not possible due to the lack of information provided.	Only cases in which parental alienation was raised as an issue were in our data set.
Trial-level cases were included in the full data set.	No details are provided about the proportion of trial-level cases that were tied to the appellate-level cases in the same data set. Trial-level cases are not all listed on legal database searches, whereas all appellate-level cases are. Independence of the data cannot be assumed when some cases are tied, which violates statistical assumptions underlying the use of logistic regression models. The trial-level cases are also not representative of all trial-level cases, making the generalization of findings to that level of cases limited.	Only publicly available appellate-level cases were included in the data set.
Coding of the data set		
Details about the coders of the data sets are not provided.	It is unclear how many coders there were, how they were trained, their level of education, their gender, and how much knowledge they had about the study's hypotheses. The coders may have been biased in their coding of the cases.	Details about coders and their training is provided.
Details about how coding discrepancies were resolved are not provided, nor are interrater reliabilities.	It is unclear how accurate the coders were in the application of the codes and how discrepancies were resolved. The codes may have been unreliable in their application to the cases, and there may have been biases in how discrepancies were resolved.	All coders were blind to the study's hypotheses, and two independent coders completed the data-mining task for every case. Their being blind to the study's hypotheses helped to ensure they would not willfully overlook, or input, data in a selective way. A third coder identified discrepancies, referred to the original court ruling, and identified the correct response for those fields.
No details about the 45 specific codes and options for them that were applied to the cases were provided in the paper. ^d	Without details about the codes, it was impossible to replicate the coding of the cases for the current study.	All code definitions for this study are provided.
Readers are referred to "Appendix B" (Meier et al., 2019, p. 8) to obtain details about the codes used.	"Appendix B" (Meier et al., 2019, p. 8) was not published with the research paper and was not made publicly available until August 27, 2020. The author failed to provide us with the information when requested in the fall of 2019. This extended delay in provision of the materials required the reader to "trust" the author that the codes are clear and accurately captured the variables under study. This failure also made replication of the study impossible.	All codes and definitions for this study are provided and are publicly available on the Open Science Framework.

(*table continues*)

Table 1 (continued)

Issue and identified flaw	Problem with the flaw	Remedy
There was a lack of clarity in the paper concerning how codes were defined.	The authors were unclear about how multiple claims of abuse were coded because only “credited” or “not credited” was applied to each case when there was an abuse allegation. “Corroboration of abuse” was described as whether a protection order, arrest, or prosecution of interpersonal violence was made (p. 20). “Proven” cases in the “all abuse” database is also described, but it is unclear who made this determination and how substantiation was determined. Collapsing across multiple claims of abuse into one code of “credited” versus “not credited” for each case fails to document the use of serial abuse allegations in postdecree cases. The way corroboration of abuse is defined assumes that all claims and formal allegations of abuse are true, even if they later had been deemed false after investigation or trial.	All abuse claims were coded for each case and details were recorded as to their substantiation.
There did not appear to be consistent application of codes across the two data sets.	Corroboration of abuse appears to have been applied to only the “all abuse” data set and not the “analytic” data set. “Credited” abuse and “founded” abuse were described in separate analyses, with “credited” never being defined, and criminal convictions in the “all abuse database” being coded as “credited” for the “all abuse” data set (p. 20), making it appear that the two codes are conflated for the “analytic” data set analyses. Lack of clarity of the codes and how they were applied can lead to biases in application and interpretation and make replicability impossible.	One database was used for this study, and the codes were clearly defined and applied consistently across cases.
Change in custody is consistently worded throughout the report as whether the mother or father “loses custody” after making an abuse allegation.	Many judgments involved changing custody from joint to primary custody with one parent or reversing the primary custodial status of the parent. It is not clear whether Meier et al. were considering any negative change as complete loss of custody, which would be an inaccurate depiction of the outcome. ^c Lack of clarity about how custody loss was defined makes conclusions drawn about this outcome limited.	We coded cases for substantial gain, loss, or status quo regarding custody, as well as identified cases in which all parenting time was lost.
Readers are referred to “Appendix C” (Meier et al., 2019, p. 8) to obtain details about the analytic plan and statistical codes.	Data analysis “Appendix C” (Meier et al., 2019, p. 8) was not publicly available at the time of this writing and was not provided to us when requested of the author. We were informed that the information may not be available on the Department of Justice Archive for up to 9 months after the report was published. Only frequency data for the variables were provided. Failure to provide analysis and statistical information upon request, when Appendix C will not be available for review for many months after publication of the report, requires the reader to trust the author that the analyses were done correctly. This failure also makes replication of the study impossible.	The full analytic plan is provided. All data and syntax have been uploaded onto the Open Science Framework.
Control variables were not clearly described or justified.	“Control for factors that may affect key outcomes” (p. 7) was mentioned, such as the state in which the case was heard and trial-level versus appellate-level court rulings. No specifics were given about the variables used and why they were added as control variables. The interpretation of the statistical findings, without clarity of what factors were controlled for in the models, is not possible.	All variables in the calculated models are clearly specified.
Gender is reported to be included as a control variable (p. 7) in the statistical models.	Gender is an independent variable in the models, because all the analyses were testing gender differences. It is unclear why gender would also then be entered as a control variable. The interpretation of the statistical findings, without clarity of the role of gender in the analyses, is not possible.	Gender is an independent variable, not a control variable, in the analytic models.
The types of variables used in the model (e.g., continuous, dichotomous, ordinal) were not described.	Without describing what type of variable each factor in the model was, it is not possible to determine whether the analytic strategy used was appropriate.	All variables for our models are described as to whether they are continuous, dichotomous, or ordinal.

(table continues)

Table 1 (continued)

Issue and identified flaw	Problem with the flaw	Remedy
The ways variables were dummy-coded was not clearly described. ^c	Without knowing how the variables were dummy-coded, it is not possible to evaluate the direction of effects (odds ratios) in the model. Meier did not provide such statistics, so it is therefore impossible to determine whether her interpretation of the effects was accurate.	Information on how variables were coded are described in the preregistration materials, and all other decisions are described in an open research process document available on the Open Science Framework.
Results		
The ways variables were dummy-coded was not clearly described. ^c	Without knowing how the variables were dummy-coded, it is not possible to evaluate the direction of effects (odds ratios) in the model. Meier did not provide such statistics, so it is therefore impossible to determine whether her interpretation of the effects was accurate.	Information on how variables were coded are described in the preregistration materials, and all other decisions are described in an open research process document available on the Open Science Framework.
No model fit statistics were provided for any of the logistic regressions that were conducted.	Without model fit information, it is not possible to determine whether the models used were appropriate for the data and what factors in the models were most important.	All model fit statistics are provided.
Adjustments to <i>p</i> values for multiple comparisons (e.g., <i>p</i> < .01) and effect sizes were not provided.	It was not clear whether multiple comparisons were made and whether adjustments were made to the <i>p</i> values because the likelihood of false positives (Type 1 errors) increases with multiple comparisons. The magnitude of the effects is also not possible to determine based on the information provided.	A <i>p</i> value of .05 has been used (no multiple comparisons were made).
Odds ratios were described as likelihoods (e.g., “mothers are 2.48 times as likely to lose custody when an evaluator is present than not”; p. 24) when odds and likelihood are not the same concepts.	Odds are the ratios of two events, whereas likelihood refers to the number of events divided by the total number of events, which requires a base rate or estimation of the overall occurrence of the phenomenon (ranges from 0 to 1; e.g., Pampel, 2000). Describing odds ratios as probabilities is misleading and makes the statistical effect appear much larger than it is.	Statistical findings were thoroughly described so as to not mislead the reader.
Proportions of cases were continually reported as “rates.”	Rate refers to the quantity of one dimension (total people affected) divided by another dimension (population at risk) and includes an indication of time (e.g., each year; VanEenwyk, 2012). Proportions are just percentages of cases in the data set. The terminology used was incorrect and could be potentially misleading to the reader.	Statistical findings were thoroughly described so as to not mislead the reader.

Note. HARKing = hypothesizing after results are known; Open Science Framework = Open Science Framework; PA = parental alienation; AKA/aka = also known as.

^a On August 27, 2020, the user manual was finally made available to the public on the archive website. The user manual contained the search term string. We entered this term into the LEXIS/NEXIS database and obtained 10,000+ case results, only 250 of which can be downloaded at a time. Screen shots of this search are available on the Open Science Framework. The extremely detailed search string did not appear to narrow the search of cases to be included, and it still remains unclear how many cases from this large search were eliminated for the various reasons specified in the paper and user manual. ^b The user manual referenced in footnote a presented many other exclusion criteria for which no explanations or justifications were provided. For example, cases in which custody of children was split between parents, which is an intervention sometimes used by courts to address parental alienation, were excluded in the Meier et al. database. ^c The user manual referenced in footnote a indicates that the full data set may have been restricted to include only cases where abuse was credited, but the details about this remain unclear. ^d The user guide referenced in footnote a contained more details about the codes applied, but they were not fully explained, and it was not clear why so many levels were assigned to the values given to each code. ^e The syntax provided in the user manual described in footnote a did not make clear how variable codes were combined to form different types of variables (e.g., continuous, dichotomous).

Data Analysis

Meier et al. (2019) stated that spreadsheets of the coded data were sent to a statistical consultant for analysis and that the analytic plan and statistical codes were available in what was referred to as “Appendix C” (p. 8), which was not published with the paper. Specific details on variables and why particular control variables were used were also not provided in the Meier et al. paper. Without variable details or information about distributions of the data, it is not possible to determine whether the analytic strategy used was appropriate. The lack of transparency calls into question whether the analyses were executed correctly and/or whether the data were “massaged” to support her hypotheses.

Another concern was whether Meier et al.’s hypotheses were created post hoc to explain statistically significant findings—their hypotheses were not preregistered. We detail thoroughly below the full analytic models and variables that were preregistered on the OSF, prior to our data coding and analysis.

Statistical Results

Statistical results were reported largely as percentages of cases in different categories throughout the Meier et al. (2019) report, and odds ratios were reported for only statistically significant analyses. No model fit statistics were provided for any of the logistic regressions that were conducted. Meier et al. also did not

report what p value was used to determine statistical significance for most of her statistics (e.g., $p < .05$). Also, it was not clear whether separate model tests were conducted for group comparisons and how many there were, leading to the potential for Type 1 errors (false positives). Throughout the report, Meier and colleagues often described odds ratios as likelihoods or probabilities. Odds ratios represent how one event is more or less likely than another, whereas probability represents how likely an event is out of all possible outcomes. When the frequency for the event under investigation is low, odds ratios can make the likelihood of a rare event seem more common than it actually is. This is another form of woozling (Nielsen, 2015) because it is misleading to make the statistical effect appear much larger than it is. We provide all model fit statistics for our analyses and use the correct terminology to explain our results to not woozle readers into misunderstanding the meaning of the statistical findings. All data and syntax used to conduct the analyses are available on the OSF.

Given the sampling, coding, and analytical problems described above, it is highly likely that Meier et al.'s (2019) interpretation of their findings is plagued by confirmation bias, which is another way that woozling occurs (Nielsen, 2015). If generalizations and recommendations for administrative (e.g., Child Protective Services [CPS]) and legal institutions are based on biased research, considerable damage may be caused for families. To prevent the woozling of personnel who make so many important decisions regarding the welfare of children and families, this OSF-preregistered study provides an objective, transparent, and methodologically rigorous test of the hypotheses related to PA described by Meier et al.

The Current Study

The time line within which we completed this project is important to detail. The Meier et al. (2019) research paper was published on the SSRN website (<https://ssrn.com/abstract=3448062>) on September 5, 2019. Due to concerns with the methods and statistics reported in the paper, a member of our research team contacted Meier between September 24 and 30 of 2019 and asked for the 10-line LEXIS search string, the coding manual, the full list of the 4,338 cases coded, Appendix B, and Appendix C that were referred to in the paper. Meier questioned the inquirer's affiliation, asked what the proportion of men and women were in her professional practice, and then directed her to archives of the National Institute of Justice for the requested information, which is the institution that funded her project.¹ We were notified by the funder that data was to be submitted by grantees at least 90 days before the end of their grant periods, which for the Meier et al. grant was June 30, 2019. In other words, although the data and materials were supposed to be available on the archive by April 30th of 2019, the materials were not yet accessible at the time of our inquiry in September of 2019, and Meier informed us she had "no idea" when they would be available (see footnote 1). After being denied our request for this information directly from her, we registered our emails with the archive's website to be notified when the requested materials would become available. We were left to our own devices to determine Meier et al.'s hypotheses, research methods, and statistical models, using only what was reported in their paper.

On January 19, 2020, we preregistered our hypotheses, methods, and analytic plan on the OSF. This preregistration was created to minimize the potential for ideological biases that may influence methodological choices and research conclusions. From the end of January through early July 2020, our research team coded, checked, and entered all the data for this study. Analyses for the study were completed, and the results and discussion sections of the paper were completed by the end of the summer of 2020. It was not until October 19, 2020, that we became aware that Meier and colleagues (2019) posted some of the materials we had requested (a year previously) on the archive website. However, not all the information we had requested was available on the website. The notification system had failed to inform us when these materials were made available on August 27, 2020, and at that point our entire project had been completed.

The only Meier et al. (2019) materials that were available for download from the archive at the time of this writing were the "user manual" that provides details on code definitions, the search terms, inclusion and exclusion criteria, and frequencies for the variables. The list of cases, statistical models, and output still did not appear to be available. Although the source of the data is publicly accessible (published court reports) and the project has been funded by public tax dollars, the database access is severely restricted. The requestor must meet many qualifications (e.g., have an appointment at a research institution, have an academic degree, and have institutional review board approval) and fulfill numerous activities (e.g., provide a reason for the request, sign confidentiality pledges) to gain access to the data (see <https://www.icpsr.umich.edu/web/NACJD/studies/37331>).

Therefore, a true replication of Meier et al.'s (2019) study has not been possible over the last year, given the paucity of information available about the authors' methods and statistics. Our review of the limited information uploaded to the archival website at the end of August 2020 raised more, rather than allayed, our concerns about the study's design and findings than we initially detailed prior to the preregistration of our study. For example, the search term provided was extremely long and specific yet yielded over 10,000 cases when we attempted to replicate the search using the same database the authors stated was used for their initial search. There were also not specific details about how many cases were excluded from this initial search using their exclusion criteria. The exclusion criteria provided for cases and reasons for discounting claims of abuse in the user manual contained many details that had not been described in the paper and only served to heighten our concerns about the cherry-picking of data and biased definitions of codes. Although syntax was provided to show how particular variables were scored, it is unclear what the values of the final variables are, whether they are dichotomous or continuous, and so forth.

Our study design, which provides a direct and thorough test of Meier et al.'s (2019) hypotheses related to PA, is detailed below. The study was designed to address the methodological limitations of Meier et al.'s study that were described in the research paper. After our review of the partial material that is now publicly accessible, we

¹ Details of the correspondence regarding our request for this, and other information referenced in the report is documented and available on the Open Science Framework.

determined that the methodological flaws identified in Table 1 remain unchanged (in fact we found more) and that our study, as designed, provides a stronger and more transparent test of the hypotheses. The execution of the method (procedures, analyses) was followed exactly as specified, and updates, coding sheets, data files, SPSS syntax and output (including model fit statistics), and other related materials are all publicly available on the OSF (https://osf.io/f9bh5/?view_only=fc6a8223317745e59fc7058543185058).

We tested a more formally specified and expanded set of hypotheses related to PA cases than did Meier et al. (2019), who only outlined a series of research questions that they later said were “tested.” Without providing justification for the testing of some very specific relationships, the authors appear to also have developed hypotheses post hoc to explain statistically significant findings. For example, Meier and colleagues reported testing a hypothesis that when a mother makes a claim of sexual abuse and child abuse, and at least one of them was founded, she was more likely to lose parenting time than was a father. HARKing (hypothesizing after results are known) is a seriously questionable research practice that threatens the credibility of research results (Murphy & Aguinis, 2019), and so we preregistered our hypotheses prior to data collection to ensure that we could conduct confirmatory, rather than exploratory, tests of our hypotheses. Six main hypotheses (and one corollary hypothesis) that specifically examined whether there are gender differences in judicial outcomes for appellate cases in which PA was either alleged or found to be an issue were tested.²

Hypothesis 6 was the only hypothesis that was unique to this study, because we wanted to test whether unfounded allegations of abuse toward a targeted or alienated parent would result in decreases in or loss of parenting time for the targeted or alienated. Meier et al.’s (2019) five other hypotheses were written to test whether these negative consequences affected the parent accused of alienating their children. False or unfounded allegations of abuse against the targeted or alienated parent are often a strategy used by alienating parents to gain or obtain custody of their children (Harman & Matthewson, 2020), so we added Hypothesis 6 to test for this effect. For the sake of brevity, each hypothesis is detailed fully in Table 2, along with the variables and model tests that were used to test them.

Method

Selection of Cases

Two samples of appellate cases in which PA was “found” or “alleged” to have occurred were drawn from a full set of appellate cases created for a separate project unrelated to the current investigation (Lorandos, 2020). Alleged cases were those where PA was alleged by someone but was not found by an expert or the court to have happened, such as a parent claiming they were being alienated from their child. Found cases were cases in which an independent evaluating expert (e.g., a psychologist) is noted as having found PA to be an issue in the case or the court came to this determination after reviewing the evidence presented in the case. The cases were selected from a database inquiry using the ALL-STATES WestLaw database. The search query was as follows: ((alienat!/(mother father son daughter parent!))) & DA(aft 12–

31-1984 & bef 01–01-2019). In plain English, the query searched for these:

1. any word fragment that contained “alienat” (which could include alienate, alienated, alienating, or alienation);
2. the “alienat” word fragment appeared within the same sentence as with one of these words: “mother,” “father,” “son,” “daughter,” or the root word fragment “parent”; and
3. the case was released and available between January 1, 1984, and December 31, 2018.

This initial search strategy resulted in 3,555 cases. There was considerable variability in the judgments about whether a case involved PA because some cases involved only allegations of PA, whereas others were corroborated by an expert or evidence presented in court. Six legal assistants (three men, three women) evaluated each case as to whether it involved an independent evaluating expert (e.g., a psychologist) who testified about PA, whether PA was found by the expert, or whether the court itself found that there was PA based on the evidence presented (with or without expert testimony). Four of the assistants were law school graduates, one was a forensic psychology doctoral candidate, and the other was a paralegal with a bachelor’s degree and over 10 years of legal research experience. The second author, a legal expert on PA, had monthly research meetings with the team to review the cases to determine whether they would be classified as what was eventually labeled the FOUND PA data set. This classification process resulted in 1,181 cases where an expert or the court determined PA had been found to have occurred in the case.

The remaining 2,374 cases contained those where PA was alleged (but not found by an expert or the court), cases where PA was referenced in relation to other cases rather than the appellate case itself, and cases in which the root word “alienat” was not referencing PA (e.g., alienation of property, alienation of partner affections). A Microsoft Word search using “alienat” as the root word was applied to the judgment entries to determine whether the root word(s) in each were related to PA. This sorting process eliminated cases that did not involve PA or where it was not raised as an issue by someone for the appeal case itself. After eliminating these cases, the final ALLEGED PA database contained only cases in which PA was mentioned or alleged by any party involved with the case (e.g., parent) but was not supported or found to be at issue in the case (aka “not credited”).

One paid female legal research assistant who had been trained by the second author and was blind to the study’s hypotheses sorted the legal cases for both data sets by date and year of entry. Although fathers were overrepresented as alienated parents in the full data set (~75% of cases; Lorandos, 2020), we aimed to select equal numbers of cases for male and female (alleged) targets of PA because all our hypotheses involved testing for gender differences in outcomes. Working chronologically from December 31, 2018, backward, we planned 250 cases each from the FOUND PA and ALLEGED PA data sets in which the mother was the alienating

² We initially specified seven hypotheses and one corollary hypothesis but then later realized that Hypothesis 5 was the corollary hypothesis and was therefore redundant. This hypothesis was therefore eliminated.

Table 2*Preregistered Hypotheses and the Analytic Models Tested*

No.	Hypothesis	Analysis ^a	Independent variables ^b	Dependent variables
H1	When a mother is perceived to be undermining the father's paternal rights and alienating their child(ren), she is more likely to get a decrease in parenting time, lose custody of her children, and lose her case than is a father.	Logistic regression models	Gender of alienator (M/F) Founded versus alleged PA case	Decrease in parenting time Total loss of custody (Alleged) alienating parent loses case
H1a	H1 results will be statistically significant even when the alienated parent is proven to be abusive.	Logistic regression model using only cases where the abusive parent variable = 1	Gender of alienator (M/F) Founded versus alleged PA case	Decrease in parenting time Total loss of custody (Alleged) alienating parent loses case
H2	When mothers claim intrafamilial abuse in family court and the father claims PA, her reports of abuse will be determined by the court to be unfounded more often than if the father claimed abuse and the mother claimed PA.	Linear regression using only cases where the abuse allegation variable = 1	Gender of alienator (M/F) Founded versus alleged PA case	No. of unfounded claims of abuse
H3	When mothers claim intrafamilial abuse in family court and the father claims PA, she will be more likely to have a decrease in parenting time or lose all custody than if the father claimed abuse and the mother claimed PA.	Logistic regression model using only cases where the abuse allegation variable = 1	Gender of alienator (M/F) Founded versus alleged PA case	Decrease in parenting time Total loss of custody
H4	Mothers will have a decrease in parenting time or lose all custody more often than will fathers when a GAL or custody evaluator is involved in the case.	Logistic regression model using only cases where the third party variable = 1	Gender of alienator (M/F) Founded versus alleged PA case	Decrease in parenting time Total loss of custody
H5 ^c	When a mother claims that both child abuse and sexual abuse occurred and one or both were corroborated, she is more likely to be penalized than is the father by getting a decrease in parenting time or losing all custody.	Logistic regression model using only cases where the child abuse variable = 1 ^d	Gender of alienator (M/F) Founded versus alleged PA case	Decrease in parenting time Total loss of custody
H6 ^c	The greater the number of false allegations of abuse that a mother makes, the more likely it is for the father to have a decrease in parenting time or lose all custody.	Logistic regression model ^e	Gender of alienator (M/F) Founded versus alleged PA case No. of unfounded claims ^e	Decrease in parenting time (alleged) alienated parent Total loss of custody (alleged) alienated parent

Note. H = hypothesis; M = male; F = female; PA = parental alienation; GAL = guardian ad litem.

^a The decrease in parenting time variable has three ordinal levels, so a multinomial logistic regression was used. Total loss of custody and loss of the case were dichotomous, so binary logistic regression models were used. ^b Interaction terms for the independent variables will also be included in the equation. ^c Originally, we specified seven hypotheses but realized after preregistration of them that our fifth hypothesis was the same model test as Hypothesis 1a. Therefore, Hypothesis 5 was eliminated, and Hypotheses 6 and 7 were renumbered to 5 and 6, respectively. ^d Because only three cases met the criterion of having at least one of two child abuse or sexual abuse claims substantiated, the models could not be tested as originally planned. We therefore created the selection criteria variable *any founded claim of child abuse* as the predictor, regardless of whether the allegation was neglect or sexual, physical, or emotional abuse. ^e The original analytic plan had the cases restricted to when the parent made an unfounded allegation of abuse; however, this would not have allowed us to test the hypothesis as written. To examine whether the number of unfounded allegations affected the outcomes, we needed to include the continuous variable as an independent predictor in the models and an interaction term for this variable with gender of the (alleged) alienating parent.

parent, and 250 cases from each data set in which the father was the alienating parent, for selection ($N = 1,000$). This prioritization for more recent versus older cases was because recent judgments have considerably more detail provided and have greater potential to incorporate scientific advances in the field of PA in the testimony and conclusions made by the experts and court officials. After these cases were sequentially selected, the appellate report for each case was shared with the first author and her research team for coding and analysis.

The Data File

Next, an Excel data file was created where these details for each case were entered: (a) the sequential number assigned to the case; (b) the known or alleged database subset; (c) the name of the case; (d) the state where the appellate case was heard; (e) the year; (f) the gender of the alienating parent (alleged or found); and (g) the number of minor children directly involved in the appellate case decision (not other children indirectly affected, such as stepiblings).

The Codebook

A codebook that captures the variables tested in our statistical models was created. This codebook is presented in [Appendix \(Table A1\)](#) of this article. Adobe fillable pdf coding sheets were created with fields for each variable where research assistants entered data derived from their close examination of the appellate case reports (see the data-mining task described below). For the sake of brevity, only those variables used to test the study's hypotheses are described here.

Party/Parties who alleged parental alienation was coded as any individual who was specifically mentioned as raising the issue of PA in the case but was not an expert or court appointed custody evaluator (e.g., a parent, extended family member). *Party/Parties who found parental alienation* was coded as any individual who was an expert appointed by the court to evaluate the family (e.g., custody evaluator). If the court determined PA was an issue and no other individual (parent or otherwise) was mentioned, then "court" was entered as the party who found PA after evaluation of the evidence presented in the case. Otherwise, court was not listed in the field. *Basis for parental alienation opinion or rejection* were fields where the opinion of the court was entered as to whether they determined PA was found. This opinion was not always in agreement with the individuals who alleged or found PA. In other words, if a custody evaluator found PA, the court may not have come to this conclusion, but the case was still classified as having been "found" by an expert or court appointed professional as being an issue. When no explicit opinion was provided, "not addressed" was entered in the field. *Custody change at trial level and/or appellate level* was a description of the change in residential or physical custody of the children at both levels. If no change was made, then "n/a" was entered in the field.

Did a parent lose all custody of the child(ren) was entered using a dropdown menu with "Yes" or "No/Don't know" options. "Yes" was selected if the parent lost all parental rights or their parenting time was so severely restricted it was only a few hours a month or less as supervised or therapeutic visitation. This loss had to occur or be affirmed at the end of the appellate decision; in other words, if their loss of custody occurred prior to the trial-level motions being heard, then "No" was entered. If a parent did lose custody, then the parent(s) who lost custody were entered into another field (some cases involved both parents losing custody). *Winner* was a [Meier et al. \(2019\)](#) code for whoever won the appeal. There was a dropdown menu where coders could select whether the mother or father won the case, the mother or father lost the case, both won or lost the case, or another outcome (e.g., foster mother won the case).

Allegations of abuse were coded in detail, with one pdf form completed for every single allegation described in the report. Many fields were coded for each allegation (see [Appendix](#) in this article), and the fields used for this current study were the type of abuse alleged (domestic violence, child physical abuse, child sexual abuse, neglect, or other), who the party was that was making the allegation, who the allegation was made about, and the outcome of the investigation(s). The exact wording used to describe the outcomes (e.g., false allegation, substantiated or unsubstantiated) was entered or else "unknown" was entered in the field. Preregistered hypotheses involving the other variables that were coded on this form are being tested in a forthcoming paper.

Coding of Appellate Case Reports

A team of 19 research assistants (RAs) composed of advanced undergraduate psychology students (14 female) was trained by the first author for the data-mining task. These unpaid RAs earned university credit for completion of the work. To ensure that the RAs were blind to the study's hypotheses, we asked them to write in detail what they believed the hypotheses were after being trained to use the codebook and again after they completed all coding. Their guesses about the hypotheses for each coder are available on the OSF.³ While there were not any RAs who correctly guessed the hypotheses, two coders were assigned to each case so that any potential biases that would interfere with their data mining task were minimized.

The RAs practiced coding a sample of five cases from the original search that were not included in the study's sample. Once these were coded, the team met to review their codes and explain and discuss discrepancies, and the codebook was then clarified. Then, another five cases (not from study data set) were coded to compare and identify misapplication of the coding scheme or specific elements of the case that were overlooked (e.g., footnotes that contained relevant information). Feedback was given to coders individually if fields were regularly misapplied until such mistakes no longer occurred.

The data-mining task was not a subjective categorization or evaluation of the material, so thoroughness and accuracy rather than interrater reliability were the goals.⁴ After two randomly assigned coders completed the coding forms for each case, another RA identified those fields that were discrepant between the coders, and then the first author reviewed these fields to determine from the original appellate report which information that had been entered into the field was correct. The final coded forms were then saved and entered onto an Excel spreadsheet. All coded and final pdf forms are available on the OSF (e.g., https://osf.io/j9bh5/?view_only=fc6a8223317745e59fc7058543185058 or [Harman et al., 2020](#)).

Calculation of Variables for Analyses

We present all the variables for the analyses, along with how specifically each were scored and/or calculated, in [Table 3](#). Research process notes were also kept to document coding decisions (also available on the OSF [https://osf.io/j9bh5/?view_only=fc6a8223317745e59fc7058543185058]). It is important to note that the abusive-parent variable was coded with a dummy code of 1 if there were any findings of abuse by any party toward the parent who was accusing the other parent of alienating them from their child. The burden of proof for making a finding of abuse can be based on something as little as an "inarticulable hunch" of a CPS case-worker ([Redleaf, 2019](#)), and so our coding of this variable as a "founded" allegation was quite liberal. There may have been unreported details in the case to indicate that the finding was later

³ Four of the coders have continued working on a related study examining Canadian trial-level cases, so they have not yet provided their poststudy hypothesis guesses but will do so after completion of that study.

⁴ Our initial plan was to assess interrater reliability; however, it became apparent that the data mining for the task was not subjective and requiring calibration but rather was a task requiring triple checks to ensure accuracy.

Table 3
Variable Details for the Analytic Models

Variables used in analysis and variable name	Type of variable	Calculation
Restriction of sample variables		
Abuse allegation	Dichotomous	If <i>any</i> allegation of abuse was made by the (alleged) alienating parent, the case was assigned a dummy code of 1. If no allegation was made, the case was assigned a dummy code of 0.
Third party	Dichotomous	If a GAL or custody evaluator was mentioned as being involved in determining whether parental alienation occurred in the family, the case was assigned a dummy code of 1. If neither was mentioned, the case was assigned a dummy code of 0.
Abusive parent	Dichotomous	If an (alleged) alienated parent had <i>any</i> allegation of abuse (DV, child abuse, sexual abuse, neglect, or child maltreatment) toward them that was either substantiated and/or that they were found guilty of by a court, the case was assigned a dummy code of 1. If none are mentioned, the case was assigned a dummy code of 0.
Child abuse parent	Dichotomous	If an (alleged) alienated parent had <i>any</i> allegation of child abuse sans DV (child physical abuse, or sexual abuse, neglect, child maltreatment) toward them either that was substantiated and/or that they were found guilty of by a court, the case was assigned a dummy code of 1. If none are mentioned, the case was assigned a dummy code of 0.
Unfounded claims only	Continuous	A tally was created of all unfounded or unsubstantiated claims of abuse made by the (alleged) alienating parent. No tally was created if at least one of the allegations was substantiated or the (alleged) alienated parent was found guilty (the variable will be missing for these cases). Unknown findings were not included in this tally; only those allegations that were specifically investigated and reported to have been false, untrue, or unsubstantiated were coded.
Independent variables ^a		
Gender of (alleged) alienator	Dichotomous	If the (alleged) alienator was female, the case was assigned a dummy code of -1 . If the (alleged) alienator was male, the case was assigned a dummy code of 1.
Founded or alleged PA	Dichotomous	If the case was from the “founded PA” data set, it was assigned a dummy code of 1. If the case was from the “alleged PA” data set, it was assigned a dummy code of -1 .
Dependent variables		
Unfounded claims	Continuous	A tally was created of all unfounded or unsubstantiated claims of abuse made by the (alleged) alienating parent. No tally was created if at least one of the allegations was substantiated or the (alleged) alienated parent was found guilty (the variable will be missing for these cases). Unknown findings were not included in this tally; only those allegations that were specifically investigated and reported to have been false, untrue, or unsubstantiated were coded.
Decrease in parenting time	Ordinal	If the (alleged) alienating parent was given significantly less parenting time ($<20\%$ change in days) than they had prior to the trial-level hearing as described in the appellate case, the case was assigned a dummy code of -1 . If the (alleged) alienating parent had the same parenting time as prior to the trial-level hearing, the case was assigned a dummy code of 0. If the (alleged) alienating parent was given significantly more parenting time than they had prior to the trial-level hearing ($>20\%$ change in days), the case was assigned a dummy code of 1.
Total loss of custody	Dichotomous	If the (alleged) alienating parent lost all parenting time or parental rights, the case was assigned a dummy code of 1. These cases included those where the parenting time was substantially restricted to supervised visits for only a few hours a month or less. If the (alleged) alienating parent did not lose all time or rights, the case was assigned a 0.
Lost the case	Dichotomous	If the (alleged) alienating parent lost their appeal, the case was assigned a dummy code of 1. If the parent won the appeal, the case was assigned a dummy code of 0.
Decrease in parenting time (alleged) alienated parent	Ordinal	The <i>decrease in parenting time</i> variable was reversed to reflect loss of parenting time for the (alleged) alienated parent.
Total loss of custody (alleged) alienated parent	Dichotomous	The <i>total loss of custody</i> variable was reverse-coded to reflect total loss of custody for the (alleged) alienated parent.

Note. GAL = guardian ad litem; DV = dependent variable; PA = parental alienation.

^a Our original planned dummy-coding of this variable was 0 and 1, which would not have allowed us to compare the two groups with the interaction term. Therefore, this dummy code was adjusted to be -1 and 1.

deemed unfounded or false and the “abusive” parent may not actually have been abusive.

Results

Although the initial sample size planned for the study was 1,000 cases, there were 14 cases where the alienating parental figure was not a biological or adoptive parent (e.g., a foster parent, aunt,

grandparent). These 14 cases were not included in the hypothesis testing but are included in the sample description because they provide rich details about the types of cases seen at the appellate level that involve allegations or findings of PA. In addition, there were fewer appellate-level cases (33 cases) in the original search where the father was found or alleged to be the alienating parent than there were for mothers. Therefore, our final results contained

967 cases, of which 953 were with a mother or father as one of the found or alleged alienating parents. Of the 953 cases where a mother or father was the alienating parent, 245 were cases where the father was found to have alienated the children, and 213 were where PA was alleged and not found. After the nonbiological parental figure cases were excluded from the analyses, there were 247 cases where the mother was found to have alienated the children, and 248 where it was alleged and not found.⁵

In the full data set, there were appellate cases from every state of the United States, as well as the District of Columbia and the U.S. Territory of Guam. The largest percentage of cases were from more densely populated states, such as New York (11.9%), California (8.3%), and Pennsylvania (7.1%). The remaining states represented ~6% or fewer cases of the sample. There were approximately 1,711 children in the families that were in the appellate cases, of which 898 were from cases where PA was determined to have been found. There was great variability in the types of cases that were heard at the trial level, ranging from divorce and modification of custody and support orders to requests for termination of parental rights, contempt, and jurisdictional issues. Many appellate cases were appeals of two or more trial-level motions: 206 had two motions that were appealed, 29 had three, and four cases had four motions. The trial-level motions reflect the diversity of cases in which PA concerns are raised in U.S. family courts. We present numbers for each type of case in Table 4.

There was also great diversity in the number and role of the individual(s) who alleged or found PA across the cases, which are presented in Table 5. Thirty-one cases had no information about who raised PA as an issue. Of the remaining 936 cases, 830 had only one party raise it as a concern, 82 cases had two individuals, 10 had three, and one case had four individuals indicate they believed or found it to be an issue for the family. It is interesting that 263 cases (28.1%) involved the court's determining PA was an issue, which was a code that was applied only when there were no others who were described as raising it as a concern. This finding indicates that nearly one third of the cases in the sample had a court come to the determination that PA was an issue for a family, *independent of any other party* (the parent or a court-appointed evaluator). It is also interesting that of the cases where a court appointed custody evaluator or GAL determined that PA was occurring ($n = 151$), the court disagreed with their assessment 16.6% of the time.⁶ Again, these cases were still classified as PA having been "found" because a court-appointed professional or expert determined it to be an issue; there did not need to be agreement with the court and these experts about this determination.

Of the cases where the court concluded independently or explicitly agreed with the expert or custody evaluators that PA had occurred ($n = 225$), 21.3% involved a situation where the alienated parent had at least one allegation of abuse (e.g., domestic violence, child abuse, neglect) that was founded. These types of cases have been labeled "hybrid" cases by professionals because a child may have a legitimate reason for resisting contact with a parent because they were found to have been abusive in some form and the other parent engaged in alienating behaviors (e.g., Greenberg et al., 2019). Our data indicate that such hybrids represent only about one out of five PA cases seen at the appellate level, assuming all the findings of abuse were true.

The mean number of abuse allegations (whether substantiated or not) made about the mothers across the sample was 0.66 ($SD = 1.62$, range = 19). Nearly 70% of the cases (69.3%) did not involve any allegations of abuse for mothers, whereas 17.8% had one allegation and 6.2% had two. In contrast, the mean number of allegations made about the fathers across the sample was 1.46 ($SD = 7.95$, range = 233). A little over 50% of the cases involved no allegations of abuse toward the fathers (57.5%), and 20.8% involved two allegations (the remaining number of allegations represented 9% or fewer cases). The difference in the number of allegations of abuse alleged toward mothers and fathers was statistically significant, with fathers being alleged abusers more than mothers, $t(966) = -3.14$, $p = .002$. Those allegations that were substantiated or explicitly found by investigators or the court to be unsubstantiated, false, or not credible were examined separately in the testing of our hypotheses. It is important to note that 188 cases (19.4%) involved allegations of abuse being made about both mothers and fathers. These types of cases were deliberately eliminated from Meier et al.'s (2019) data set, making nearly 20% of cases heard at the appellate level unrepresented in her sample.

Changes in physical custody were common across the cases, regardless of the reason for the trial-level motion. At the trial level, 69% of the 967 cases had some form of physical custody alteration (e.g., shared parenting to alternating weekends), and 12.9% of these cases had an alteration at the appeal level, either reversing the trial-level order or ordering the initial request of the petitioning parent that had been denied at the trial level. Across the cases, 20.3% involved one parent's losing all custody of their children, either through termination of their parental rights or having limited supervised visitation to a few hours a week or less. Approximately 40% of the cases (390/963) involved an alienating parent's (alleged or found) losing 20% or more of their parenting time after the trial-level and appeals process, and 41.2% of 962 had no change in their amount of physical custody of the children. One hundred seventy-six (out of 963, or 18.3%) parents who alleged or

⁵ After cases were examined in the data-mining task with deep scrutiny, there were numerous cases in which the court determined parental alienation occurred or did not occur that were not originally classified in this way. This discrepancy was likely due to our analysis of all the details of the rulings, which resulted in identifying sections of text that were missed by the assistants in the initial identification of cases that featured the issue more prominently in their search terms and case summaries. In 512 cases, the court determined that parental alienation did occur in the family (of which 250 were alienating mothers and 270 were alienating fathers), and there were 247 cases in which the court specifically stated parental alienation was not an issue in the case (144 where the mother and 103 where the father was alleged but not found; the remaining were cases where the courts did not specify an opinion). We analyzed all our hypotheses using this as a predictor separately, and this output is available on the Open Science Framework (https://osf.io/j9bh5/?view_only=fc6a8223317745e59fc7058543185058). The research results were similar to those presented in this article; however, the effects were often stronger (see footnote 1).

⁶ Due to the way the data was recorded, it was not possible to determine how often custody evaluators or guardians ad litem determined parental alienation did not occur and were overridden by the court.

Table 4
Trial-Level Motions of the Appellate Cases

Motions	No. of cases
Divorce	160
Modification of custody, decision-making, or parenting time	550
Modification of child support, alimony, or other financial issues	85
Contempt, enforcement of court orders, show cause, compel	137
Termination of parental rights, name change, emancipation of child, guardianship, adoption	45
Relocation	44
Motions to vacate, dismiss, or strike motions or orders	15
Requests for orders of protection, supervised parenting time and visitation, neglect and dependency	70
Other logistical or jurisdictional issues, recusal requests, reconsiderations, requests for evaluations or grandparent visitation	98

Note. The total number of motions is higher than the number of cases ($n = 967$) because many of the appeals involved disputes concerning multiple motions that were heard at the trial level.

were found to have been alienated from their child(ren) lost 20% or more of their parenting time.

Around one quarter of the cases involved both parents' winning or losing their appeal (236/966) because the case involved divorce or multiple motions or points of appeal that were considered by the court. One third of the appeals were lost by both mothers (294/966) and fathers (298/966), and between 6% and 7% of cases were won by each (67/966 mothers; 57/966 fathers). Fourteen appellate cases were won by another party (e.g., foster parent, a GAL).

Preregistered Hypothesis Testing

All preregistered hypotheses and the statistical models used to test them are presented in Table 2. The full Excel database, SPSS file, and SPSS syntax and output are available on the OSF (https://osf.io/j9bh5/?view_only=fc6a8223317745e59fc7058543185058). A set of three-predictor logistic models was fitted to the data to test all the study's research hypotheses except Hypothesis 2, which was analyzed with a linear regression because the number of unfounded allegations of abuse was a continuous outcome. "Known" or "alleged" alienating parent cases and gender of the alienating parent were entered as independent variables into all the models, as well as interaction terms for the two variables. The regression analyses were carried out using IBM SPSS statistics package Version 26. Decrease in parenting time was an ordinal variable with three levels (increase of 20% or more parenting time, decrease of 20% or more parenting time,

or no change), and so multinomial logistic regression models were used for that dependent variable. Loss of custody and whether a parent lost their case were dichotomous dependent variables, and so binary logistic regression analyses were used to test those dependent variables.

Unless specified below, all model fit statistics were good, indicating that the models were more effective than was the null model. Tables 6–13 provide specific model fit statistics, and outcomes for the models with statistically significant findings (other specific model outcomes, observed and predicted case percentages, and so forth were excluded here for the sake of brevity but are available on the OSF [https://osf.io/j9bh5/?view_only=fc6a8223317745e59fc7058543185058]).

Hypothesis 1

The first preregistered hypothesis we tested was whether mothers who are perceived to be undermining the father's paternal rights and alienating their child(ren) are more likely to get a decrease in parenting time, lose custody of her children, and lose her case than was a father. We did not find support for this hypothesis. According to Table 6, the only significant predictor in the multinomial logistic regression model testing decrease in parenting time was whether the case had been identified as having a known or alleged alienating parent. Regardless of the gender of the parent, a known rather than alleged alienating parent had an 88% greater probability ($OR = 0.128$) of losing than gaining parenting time ($p < .001$). This finding implies that parents known to have alienated their child(ren) had more than a 10-fold increase in the likelihood they would lose rather than gain parenting time. A known alienating parent rather than an alleged alienating parent also had 50.4% lower odds ($p = .001$), or a 66.8% lower likelihood of having their custody remain the same than lose parenting time.

In a similar way, the results of the binomial logistic regression indicate that if there was a known alienating parent, this parent had 2.41:1 greater odds (70.64% greater likelihood) of losing custody of their children than was an alleged alienating parent ($p = .002$; see Table 7). This finding means that when a parent was a known alienating parent, their odds of losing custody increased 2.5 times. We also found a statistically significant gender main effect, such that fathers had 1.73 greater odds (63.30% greater likelihood) of losing custody of their

Table 5
Parties Who Alleged or Found Parental Alienation

Party	No. of cases
Mother	204
Father	304
Court	263
Guardian ad litem	45
Court appointment psychological evaluator	140
Mental health, legal professional, or agency representative (e.g., therapist, child protection worker)	120
Other family member (e.g., stepparent)	17

Note. The total number of third parties represented is higher than the number of cases ($n = 967$) because many of the appeals involved multiple parties alleging or finding parental alienation had occurred.

Table 6

Multinomial Logistic Regression Analysis: Gender and Known or Alleged Alienating Parent as Predictors of Decreases in Parenting Time

Predictors in the model	<i>B</i>	<i>SE B</i>	Wald's χ^2	<i>df</i>	<i>p</i>	<i>e</i> ^B (odds ratio)	95% CI for Exp(B)	
							LL	UL
Alienating parent lost parenting time								
Intercept	1.841	0.224	67.299	1	<.001			
Gender of known or alleged alienating parent	−0.177	0.210	0.710	1	.399	0.838	0.555	1.264
Known or alleged alienating parent	−2.056	0.210	96.012	1	<.001	0.128	0.085	0.193
Gender of Known or Alleged Alienating Parent × Known or Alleged Alienating Parent	0.233	0.210	1.230	1	.267	1.262	0.836	1.904
No change in parenting time								
Intercept	1.208	0.238	25.857	1	<.001			
Gender of known or alleged alienating parent	0.091	0.203	0.198	1	.656	1.095	0.735	1.631
Known or alleged alienating parent	−0.702	0.203	11.897	1	.001	0.496	0.333	0.739
Gender of Known or Alleged Alienating Parent × Known or Alleged Alienating Parent	0.111	0.203	0.298	1	.585	1.117	0.750	1.665
Test (overall model evaluation)	Value		χ^2		<i>df</i>		<i>p</i>	
Overall model likelihood ratio test			143.417		6		<.001	
Likelihood ratio test gender of parent			3.041		2		.219	
Likelihood ratio test known or alleged alienating parent			138.216		2		<.001	
Likelihood ratio test interaction effect			1.369		2		.504	
Akaike information criterion	59.399							
Bayesian information criterion	98.276							
−2 log likelihood	43.399							

Note. $N = 953$. The reference category for this model is "alienating parent gained parenting time." SPSS programming codes are available in full on the Open Science Framework preregistration. Cox and Snell $R^2 = .140$. Nagelkerke R^2 (max rescaled R^2) = .160. McFadden = .072. All statistics reported herein use three decimal places to maintain statistical precision. CI = confidence interval; LL = lower limit; UL = upper limit.

child(ren) than did mothers ($p = .002$). The interaction effect was not statistically significant. Therefore, mothers who were alleged or found to be an alienating parent were less likely to lose custody of their child than was a father, and parents who were found to have alienated their children, no matter the gender, were more likely to lose custody.

Both main effects were statistically significant in the model examining who lost the appellate court case. Fathers had 26% lower odds of losing their case than did mothers (57.41% lower probability, $p < .001$), and parents found to have alienated their child(ren) had twice the odds of losing their case than did those who were alleged ($p < .001$; see Table 8). The interaction effect

Table 7

Binary Logistic Regression Analysis: Gender and Known or Alleged Alienating Parent as Predictors of Loss of Custody

Predictors in the model	<i>B</i>	<i>SE B</i>	Wald's χ^2	<i>df</i>	<i>p</i>	<i>e</i> ^B (odds ratio)	95% CI for Exp (B)	
							LL	UL
	Predictor							
Constant	0.515	0.175	8.701	1	.003	1.673		
Gender of known or alleged alienating parent	0.545	0.175	9.762	1	.002	1.725	1.225	2.429
Known or alleged alienation case	0.878	0.175	25.296	1	<.001	2.406	1.709	3.387
Gender of Known or Alleged Alienating Parent × Known or Alleged Alienation Case	0.182	0.175	1.091	1	.296	1.200	0.852	1.689
Test	Value		χ^2		<i>df</i>		<i>p</i>	
Overall model evaluation								
Likelihood ratio test			39.912		3		<.001	
−2 log likelihood	211.279							
Goodness-of-fit								
Hosmer and Lemeshow Test			0.000		2		1.00	

Note. $N = 953$. SPSS programming codes are available in full on the Open Science Framework preregistration. Cox and Snell $R^2 = .190$. Nagelkerke R^2 (max rescaled R^2) = .259. All statistics reported herein use three decimal places to maintain statistical precision. CI = confidence interval; LL = lower limit; UL = upper limit.

Table 8*Binary Logistic Regression Analysis: Gender and Known or Alleged Alienating Parent as Predictors of Loss of Case*

Predictors in the model	<i>B</i>	<i>SE B</i>	Wald's χ^2	<i>df</i>	<i>p</i>	<i>e</i> ^B (odds ratio)	95% CI for Exp(B)	
							LL	UL
	Predictor							
Constant	−0.299	0.076	15.350	1	<.001	0.741		
Gender of known or alleged alienating parent	−0.298	0.076	15.227	1	<.001	0.742	0.639	0.862
Known or alleged alienation case	0.745	0.076	95.096	1	<.001	2.106	1.813	2.446
Gender of Known or Alleged Alienating Parent × Known or Alleged Alienation Case	−0.237	0.076	9.647	1	.002	0.789	0.679	0.916
Test	Value		χ^2		<i>df</i>		<i>p</i>	
Overall model evaluation								
Likelihood ratio test			124.685		3		<.001	
−2 log likelihood	1033.845							
Goodness-of-fit								
Hosmer and Lemeshow Test			0.000		2		1.00	

Note. $N = 953$. SPSS programming codes are available in full on the Open Science Framework preregistration. Cox and Snell $R^2 = .137$. Nagelkerke R^2 (max rescaled R^2) = .184. All statistics reported herein use three decimal places to maintain statistical precision. CI = confidence interval; LL = lower limit; UL = upper limit.

was also statistically significant, in that fathers who were known alienating parents had 21% lower odds (55.89% lower likelihood) of losing their case than did mothers who were known alienating parents ($p = .002$; see Table 8).

Hypothesis 1a

Hypothesis 1's corollary hypothesis was that the results would remain statistically significant even if the accusing or alienated parent was found to have been abusive. We narrowed the sample so that any case where the known or alleged alienated parent had a finding of abuse against them was used in the analyses. This restriction brought the sample size to 122 cases. We again did not find support for this hypothesis. Due to this substantial decrease in sample size, the model fit for the multinomial regression was not as good as the test of Hypothesis 1; for example, $\chi^2(6, N = 953) = 10.76, p = .096$ (see Table 9). The only statistically significant effect in this model was that when a parent was accused rather than found to have alienated the child(ren) and the other parent had at least one finding of abuse toward them, their odds of losing custody rather than gaining custody were 69.4% lower. In other words, parents who were found to be rather than accused of being an alienating parent had a 76.56% lower likelihood of gaining rather than losing parenting time when the other parent had a finding of abuse. There were not statistically significant gender differences or interaction effects in the model.

In the model testing loss of custody, there was a statistically significant main effect for gender of the alleged or known alienating parent. Fathers had 2.33 higher odds ($p = .037$) of losing custody of their children than did mothers, even when the mother had a finding of abuse against her. This finding means that the probability of a father losing custody of his child(ren) when the mother had a finding of abuse against her was 69.97% higher than for mothers in a family where the father had a finding of abuse. Parents found to have alienated their child(ren) had 2.45 greater odds of losing custody of their children than did parents who had been alleged to be alienators ($p = .028$) if there had been a finding of abuse made about the other parent (see Table 10). In other

words, when a parent was found to be alienating their child(ren) from the other parent and the other parent had some finding of abuse at some point, they were 70.97% times more likely to lose custody than were parents who were only alleged to be alienating parents. We did not find a statistically significant interaction effect in this analysis.

When an (alleged) alienated parent had a finding of abuse, the only predictor in the model as to whether the known or alleged alienating parent lost their case was their known or alleged status. This finding means that parents known to have alienated their child(ren) had over twice the odds of losing their case than did those who were only alleged, if there was a finding of abuse against the other parent ($p = .002$). Therefore, parents who were known to be alienating their child(ren) had a 67.91% greater probability of losing their case than did an alleged alienating parent if the other parent had a finding of abuse against them. There were no other statistically significant effects in the model.

Hypothesis 2

Hypothesis 2 was that when a mother claims intrafamilial abuse and the father claims PA, her reports of abuse will be deemed unfounded more often than if the father claimed abuse and the mother claimed PA. To test this hypothesis, we calculated a linear regression to predict the number of unfounded allegations of abuse based on the gender of the parent and whether the case was known or alleged. A statistically significant interaction effect between known and alleged cases of PA and gender would lend support to the hypothesis. We restricted our analysis to include only cases in which one parent made a claim of abuse toward the other parent ($n = 336$), and a significant regression equation was found, $F(3, 333) = 5.630, p = .001$, with an R^2 of .220. The only significant predictor of an unfounded allegation of abuse was gender ($\beta = -.199$, confidence interval $[-1.063, -.341]$), such that the number of unfounded allegations of abuse was higher for fathers than for mothers ($p < .001$), regardless of whether they were a

Table 9

Multinomial Logistic Regression Analysis: Gender and Known or Alleged Alienating Parent as Predictors of Decreases in Parenting Time in Cases Where the Accusing or Alienated Parent Was Found to Have Been Abusive

Predictors in model	<i>B</i>	<i>SE B</i>	Wald's χ^2	<i>df</i>	<i>p</i>	<i>e</i> ^B (odds ratio)	95% CI for Exp(B)	
							LL	UL
Alienating parent lost parenting time								
Intercept	0.118	0.486	0.059	1	.808			
Gender of known or alleged alienating parent	−0.382	0.487	0.615	1	.433	0.683	0.263	1.773
Known or alleged alienating parent	−1.183	0.487	5.905	1	.015	0.306	0.118	0.795
Gender of Known or Alleged Alienating Parent × Known or Alleged Alienating Parent	0.883	0.487	3.289	1	.070	2.418	0.931	6.278
No change in parenting time								
Intercept	0.000	0.500	0.000	1	1.00			
Gender of known or alleged alienating parent	−0.107	0.451	0.057	1	.812	0.898	0.371	2.174
Known or alleged alienating parent	−0.161	0.451	0.127	1	.721	0.851	0.352	2.061
Gender of Known or Alleged Alienating Parent × Known or Alleged Alienating Parent	0.241	0.451	0.285	1	.593	1.272	0.526	3.080
Test (overall model evaluation)		Value		χ^2		<i>df</i>		<i>p</i>
Overall model likelihood ratio test				10.762		6		.096
Likelihood ratio test gender of parent				0.644		2		.725
Likelihood ratio test known or alleged alienating parent				7.055		2		.029
Likelihood ratio test interaction effect				3.556		2		.169
Akaike information criterion		44.356						
Bayesian information criterion		66.789						
−2 log likelihood		28.356						

Note. $N = 122$. The reference category for this model is “alienating parent gained parenting time.” SPSS programming codes are available in full on the Open Science Framework preregistration. Cox and Snell $R^2 = .084$. Nagelkerke R^2 (max rescaled R^2) = .095. McFadden = .040. All statistics reported herein use three decimal places to maintain statistical precision. CI = confidence interval; LL = lower limit; UL = upper limit.

known or alleged alienating parent ($ps > .05$).⁷ In other words, fathers were more likely than mothers to have unfounded allegations of abuse made about them. Due to a failure to find a statistically significant interaction effect, we did not find support for Hypothesis 2.

Hypothesis 3

Hypothesis 3 was that when mothers claim intrafamilial abuse and the father claims PA, she will be more likely to have a decrease in parenting time or lose all custody than if the father claimed abuse and the mother claimed she was being alienated from her children. We again restricted the sample to only those cases where an allegation of abuse toward one parent was made by the other. We failed to find support for this hypothesis. As shown in Table 11, there was only one main effect in the model testing decreases in parenting time; the interaction effect was not statistically significant. Parents known to be an alienating parent and who made an allegation of abuse against the other parent had 86.1% greater odds (87.79% greater likelihood) of losing parenting time than gaining it compared with those who were accused of being an alienating parent ($p < .001$). There was not a statistically significant interaction effect. Likewise, a known alienating parent who made an allegation of abuse against the other parent had 47.4% greater odds (65.53% greater likelihood) of losing parenting time than maintaining the status quo compared than did those who were accused of being an alienating parent ($p = .039$).

A binary logistic regression analysis was conducted to test the hypothesis for loss of custody using only cases where an allegation

of abuse was made. Both main effects were statistically significant, but the interaction effect was not. As indicated in Table 12, fathers, compared to mothers, had 1.60 greater odds (61.54% greater probability) of losing custody if they made an allegation of abuse against the mother ($p = .048$). Parents found versus accused of having alienated their child(ren) and who made an allegation of abuse against the other parent had almost 3 times the odds of losing custody of their child(ren; $OR = 2.82$, 73.84% greater probability; $p < .001$; see Table 10).

Hypothesis 4

Hypothesis 4 was that if a GAL, a court-appointed psychologist, or custody evaluator were to identify or find PA in a case, mothers will lose more parenting time or custody than will fathers. The sample of cases was restricted to those where a custody evaluator or GAL made a finding of PA ($n = 176$), and the same models used to test Hypothesis 3 were calculated. We failed to find support for this hypothesis (all $ps > .05$). There were no statistically significant predictors in the models for decreases in parenting time or loss of custody. Mothers did not get decreases in parenting time or lose custody more often than did fathers when a GAL or

⁷ It is important to note that when the same set of analyses were conducted using as a predictor whether the court agreed with the parental alienation assessment or concluded themselves (rather than rejected it as an issue for the family), the gender difference was not statistically significant (output for these analyses is available on the Open Science Framework [https://osf.io/j9bh5/?view_only=fc6a8223317745e59fc7058543185058]).

Table 10

Binary Logistic Regression Analysis: Gender and Known or Alleged Alienating Parent as Predictors of Loss of Custody in Cases Where the Accusing or Alienated Parent Was Found to Have Been Abusive

Predictors in model	<i>B</i>	<i>SE B</i>	Wald's χ^2	<i>df</i>	<i>p</i>	<i>e</i> ^B (odds ratio)	95% CI for Exp(B)	
							LL	UL
Predictor								
Constant	−1.038	0.406	6.543	1	.011	0.354		
Gender of known or alleged alienating parent	0.846	0.406	4.352	1	.037	2.331	1.104	5.416
Known or alleged alienation case	0.894	0.406	4.855	1	.028	2.445	1.104	5.416
Gender of Known or Alleged Alienating Parent × Known or Alleged Alienation Case	0.214	0.406	0.277	1	.599	1.238	0.559	2.743
Test (overall model evaluation)			Value		χ^2		<i>df</i>	
							<i>p</i>	
Overall model evaluation								
Likelihood ratio test				9.810		3		.020
−2 log likelihood				44.174				
Goodness-of-fit								
Hosmer and Lemeshow Test				0.000		2		1.00

Note. $N = 122$. SPSS programming codes are available in full on the Open Science Framework preregistration. Cox and Snell $R^2 = .185$. Nagelkerke R^2 (max rescaled R^2) = .274. All statistics reported herein use three decimal places to maintain statistical precision. CI = confidence interval; LL = lower limit; UL = upper limit.

custody evaluator was involved with the case, whether they were found to be alienating parents or not. The output for these analyses is available on the OSF (https://osf.io/j9bh5/?view_only=fc6a8223317745e59fc7058543185058).

Hypothesis 5

Hypothesis 5 was when a mother claims that both child abuse and sexual abuse occurred and one or both were corroborated,

she is more likely to be penalized than are fathers by getting a decrease in parenting time or lose all custody (see Table 12). Our careful coding of all allegations of abuse reported in each case (2,080 allegations total) included a close examination of factors such as who investigated each type of claim, findings of the investigations across multiple parties or institutions (e.g., police, CPS, therapists), and court determinations about the abuse (criminal and family court). Across all the cases in our

Table 11

Multinomial Logistic Regression Analysis: Gender and Known or Alleged Alienating Parent as Predictors of Decreases in Parenting Time in Cases Where an Allegation of Abuse Was Raised Against the Other Parent

Predictors in the model	<i>B</i>	<i>SE B</i>	Wald's χ^2	<i>df</i>	<i>p</i>	<i>e</i> ^B (odds ratio)	95% CI for Exp(B)			
							LL	UL		
Alienating parent lost parenting time										
Intercept	1.745	0.327	28.524	1	<.001					
Gender of known or alleged alienating parent	−0.403	0.310	1.685	1	.194	0.668	0.364	1.228		
Known or alleged alienating parent	−1.975	0.310	40.487	1	<.001	0.139	0.076	0.255		
Gender of Known or Alleged Alienating Parent × Known or Alleged Alienating Parent	0.475	0.310	2.340	1	.126	1.608	0.875	2.954		
No change in parenting time										
Intercept	0.821	0.362	5.149	1	.023					
Gender of known or alleged alienating parent	0.116	0.311	0.140	1	.708	1.123	0.611	2.066		
Known or alleged alienating parent	−0.642	0.311	4.263	1	.039	0.526	0.286	0.968		
Gender of Known or Alleged Alienating Parent × Known or Alleged Alienating Parent	0.109	0.311	0.122	1	.727	1.115	0.606	2.050		
Test (overall model evaluation)			Value		χ^2		<i>df</i>		<i>p</i>	
Overall model likelihood ratio test						63.512		6		<.001
Likelihood ratio test gender of parent						4.420		2		.110
Likelihood ratio test known or alleged alienating parent						53.658		2		<.001
Likelihood ratio test interaction effect						3.128		2		.209
Akaike information criterion		52.205								
Bayesian information criterion		83.852								
−2 log likelihood		36.206								

Note. $N = 386$. The reference category for this model is "alienating parent gained parenting time." SPSS programming codes are available in full on the Open Science Framework preregistration. Cox and Snell $R^2 = .152$. Nagelkerke R^2 (max rescaled R^2) = .174. McFadden = .079. All statistics reported herein use three decimal places to maintain statistical precision. CI = confidence interval; LL = lower limit; UL = upper limit.

Table 12

Binary Logistic Regression Analysis: Gender and Known or Alleged Alienating Parent as Predictors of Loss of Custody in Cases Where an Allegation of Abuse Was Raised Against the Other Parent

Predictors in the model	<i>B</i>	<i>SE B</i>	Wald's χ^2	<i>df</i>	<i>p</i>	<i>e^B</i> (odds ratio)	95% CI for Exp(B)	
							LL	UL
Constant	0.039	0.237	0.028	1	.868	1.040		
Gender of known or alleged alienating parent	0.470	0.237	3.925	1	.048	1.600	1.005	2.547
Known or alleged alienation case	1.038	0.237	19.150	1	<.001	2.823	1.774	4.494
Gender of Known or Alleged Alienating Parent $\times$ Known or Alleged Alienation Case	0.245	0.273	1.063	1	.302	1.277	0.802	2.033
Test	Value		χ^2			<i>df</i>		<i>p</i>
Overall model evaluation								
Likelihood ratio test			26.077			3		<.001
–2 log likelihood	123.050							
Goodness-of-fit								
Hosmer and Lemeshow Test			0.000			2		1.00

Note. $N = 386$. SPSS programming codes are available in full on the Open Science Framework preregistration. Cox and Snell $R^2 = .215$. Nagelkerke R^2 (max rescaled R^2) = .287. All statistics reported herein use three decimal places to maintain statistical precision. CI = confidence interval; LL = lower limit; UL = upper limit.

database, we identified only three cases (one for a mother and two for a father) in which an allegation of sexual abuse and child abuse was made and one or both was found to be substantiated. The abusive parents were not given even partial custody of the children in any of those cases. Due to the small number of cases that were identified, we could not test the hypothesis as specified. Therefore, we created a variable of *any* substantiated allegation of child abuse, whether it was neglect, sexual, physical, or emotional abuse. We felt this was a better test of the hypothesis because children should be protected from an abusive parent, regardless of the type of abuse.

There were only 77 cases in which a substantiated claim of abuse was found toward a parent that was alleged or found to have been alienated from their child by the other parent, so the model fit for both regression analyses was not ideal. None of the predictors in the models was statistically significant, so gender and known or alleged alienating parent were not related to a decrease in custody if there was a finding of child abuse against the other parent ($ps > .05$). Therefore, we did not find support for this hypothesis. The output for these statistical analyses is available on the OSF (https://osf.io/j9bh5/?view_only=fc6a8223317745e59fc7058543185058).

Hypothesis 6

Our last hypothesis was that the greater the number of false allegations of abuse a mother makes, the more likely it is for the father to have a decrease in parenting time or lose all custody. To examine whether the number of unfounded allegations affected the outcomes, we added this continuous variable and an interaction effect of unfounded allegations and gender of parent alleged or found to be alienating the child(ren) as independent predictor in the models.⁸ If we were to find a statistically significant interaction effect, then there would be support for this hypothesis.

We found that the more unfounded allegations made about a parent by a known or alleged alienating parent, the more likely the known or alleged alienating parent was to get an increase rather than a decrease in custody (43.6% lower odds of getting a decrease compared to an increase, or a 63.93% lower likelihood of receiving

decreased parenting time compared to gaining parenting time; $p = .022$, see Table 13). In other words, the more unfounded claims of abuse that were made against a parent, the more the accused parent was likely to get a decrease than increase in parenting time—increased parenting time favored the accuser. We also found that known alienating parents had 10 times greater odds ($p < .001$; 90.97% greater likelihood) of receiving a decrease in parenting time than an increase and 4.29 greater odds of getting an increase in parenting time than no change at all. We also found a main effect for gender in that alienated fathers had almost 6 times the odds (85.67% greater likelihood) of mothers of getting a decrease in custody than did alienated mothers ($p = .031$). The interaction term was not statistically significant.

Finally, we calculated a binomial logistic regression model using the same predictors, and we found a main effect for only gender: Fathers were more likely to lose custody of their children than were mothers ($p = .036$; see Table 13). We failed to find a statistically significant interaction effect for loss of custody (table not presented here, but statistical output is available on the OSF [https://osf.io/j9bh5/?view_only=fc6a8223317745e59fc7058543185058]). Therefore, we did not find support for our last hypothesis, because both interaction effects were not statistically significant: Fathers were more likely than mothers to receive decreases in parenting time and loss of custody than were mothers, regardless of whether an unfounded allegation was made against them. However, the more unfounded allegations made against a parent, regardless of gender, the more likely they were to get decreases in their parenting time.

⁸ The original analytic plan restricted cases to when the parent made an unfounded allegation of abuse; however, this would not have allowed us to test the hypothesis as written. Therefore, the variable was entered as an independent predictor in the models. We also included only an interaction effect of the unfounded allegations and gender of the alleged or found alienated parent, because this effect would be the crucial test of the hypothesis.

Table 13

Multinomial Logistic Regression Analysis: Unfounded Allegations, Gender, and Known or Alleged Alienating Parent as Predictors of Decreases in Parenting Time in Cases

Predictors in the model	β	<i>SE</i> β	Wald's χ^2	<i>df</i>	<i>p</i>	<i>e</i> ^{β} (odds ratio)	95% CI for Exp(B)	
							LL	UL
Alienating parent lost parenting time								
Intercept	−2.682	0.470	31.520	1	<.001			
Unfounded allegations	−0.573	0.249	5.284	1	.022	0.564	0.346	0.919
Gender of known or alleged alienating parent	1.788	0.829	4.656	1	.031	5.980	1.178	30.350
Known or alleged alienation case	2.311	0.359	41.447	1	<.001	10.080	4.989	20.369
Unfounded Allegations × Gender of Known or Alleged Alienating Parent	−0.413	0.249	2.756	1	0.097	0.661	0.406	1.077
No change in parenting time								
Intercept	−1.068	0.225	22.512	1	<.001			
Unfounded allegations	−0.029	0.050	0.328	1	.567	0.972	0.880	1.072
Gender of known or alleged alienating parent	0.342	0.264	1.672	1	.196	1.407	0.838	2.362
Known or alleged alienating parent	1.457	0.271	28.905	1	<.001	4.293	2.524	7.303
Unfounded Allegations × Gender of Known or Alleged Alienating Parent	0.031	0.050	0.367	1	.545	1.031	0.934	1.138
	Value		χ^2		<i>df</i>		<i>p</i>	
Test (overall model evaluation)								
Overall model likelihood ratio test				80.425		8		<.001
Likelihood ratio test unfounded claims				10.809		2		.004
Likelihood ratio gender of known or alleged alienating parent				2.346		2		.309
Likelihood ratio test known or alleged alienating parent				58.407		2		<.001
Likelihood ratio test interaction effect				4.702		2		.095
Akaike information criterion	167.406							
Bayesian information criterion	205.928							
−2 log likelihood	147.406							

Note. $N = 348$. SPSS programming codes are available in full on the Open Science Framework preregistration. Cox and Snell $R^2 = .206$. Nagelkerke R^2 (max rescaled R^2) = .238. McFadden = .115. All statistics reported herein use three decimal places to maintain statistical precision. CI = confidence interval; LL = lower limit; UL = upper limit.

Discussion

This preregistered study tested the research findings reported by Meier et al. (2019) related to the use of PA as a legal defense in family court cases, many of which included allegations of abuse (e.g., domestic violence, child physical and sexual abuse). We identified 30 serious concerns about the conceptual, methodological, and analytic strategy used by Meier et al. to potentially mislead and “woozle” readers using her findings, and these concerns were not alleviated when more details were finally available about the study, a year after it was published and the current study was completed. The purpose of our study was to provide a more robust, transparent, and empirically rigorous test of the hypotheses derived from the Meier et al. research paper, as well as to test an additional independently proposed hypothesis. Not only did we fail to find support for Meier et al.’s conclusions but we found some effects to be the opposite of what the authors reported.

Hypothesis 1 tested whether mothers, more than fathers, would be more likely to lose or have decreases in custody and lose their legal case if the other parent claimed they were being alienated from their children. Our results did not support two of the three outcomes. Parents who were found to be alienating their children were more likely to suffer these negative consequences compared to parents who were only alleged to be doing so. In other words, claiming one is being alienated from a child did not always work as a legal strategy to gain custody of children for either mothers or fathers. Such a claim had to be “founded,” and when it was, family courts across the country appear to have taken steps to

protect children from this form of abuse. This conclusion indicates that courts recognize the damage that parental alienating behaviors do to children and that it is not in the children’s best interests to have their relationship with the alienated parent undermined or destroyed by the alienating parent. Fathers were also more likely than mothers to lose custody of their child(ren), regardless of whether the mother had been found or alleged to alienate the child(ren) from him.

We did find gender differences in which parent lost their appellate case, with mothers being more likely than fathers to lose their appeal, and if the mother was found to have been alienating her child(ren), she was more likely to lose her appeal than was a father who was found to be alienating the child(ren). This was the only hypothesis of Meier et al.’s (2019) that was supported in our study; however, the meaning of this finding is difficult to interpret. Unlike Meier et al., we did not exclude appellate cases where there were multiple reasons for the appeal, so our analysis included only cases where one parent lost or won all their reasons for their appeal. The “winning” or “losing” of the appeal also did not necessarily mean it was a bad outcome for the parent regarding their custody of their child. The trial-level motions that were appealed, such as pertaining to financial issues (e.g., child support or alimony adjustments, distribution of property) and jurisdictional challenges, varied considerably. Future research should investigate whether the type of appeal and loss of the case had a negative impact on the “loser” by gender and whether they were a known or alleged alienating parent.

As a corollary hypothesis, we tested Meier et al.'s (2019) claim that Hypothesis 1 would remain statistically significant if the accusing parent had been found to be abusive in any way. Utilizing a stringent coding of all allegations of abuse in every case, our results did not support Meier et al.'s finding. Parents who were found to have alienated their children versus those who were merely accused were the only ones more likely to have a decrease in parenting time if the other parent had any finding of abuse toward them. Likewise, parents found to have alienated their children were more likely to lose custody of their children than were those who were alleged, even when the other parent had a finding of abuse. There were statistically significant gender differences in this effect but in the opposite direction from the one that Meier et al. reported. Fathers had a higher likelihood of losing custody of the children than were mothers, even if the mother had been found to be abusive. Therefore, if a parent claimed they were alienated and had been found to be abusive, they were not more likely to get more or all custody than was the other parent, unless the other parent was found to be alienating their child(ren). A possible reason for this result is that some courts may have determined PA of the children was abusive and therefore required an intervention to protect them. Future research could examine whether such statements or findings are made with cases where more details are provided (e.g., trial-level cases).

Hypothesis 2 examined Meier et al.'s (2019) finding that when mothers claim intrafamilial abuse and fathers claim PA, her reports of abuse will be determined to be unfounded more often than if the father claimed abuse and the mother claimed PA. Our data did not provide empirical support for this hypothesis. Overall, mothers made more unfounded claims of abuse than did fathers, which is not surprising given that false allegations of abuse are a form of indirect aggression and women tend to use more indirect forms of aggression than do men (e.g., Harman, Lorandos, et al., 2019; Murray-Close et al., 2010). However, our results do not indicate that the allegations were more likely to be unfounded when mothers or fathers alleged PA. In our test of Hypothesis 6, we also did not find that mothers were penalized as much as were fathers for making false allegations of abuse toward the other parent. In fact, our results pointed to an opposite effect: Fathers had greater odds of losing parenting time if they made an unfounded claim of abuse compared to mothers.

In a similar way, in our test of Hypothesis 3, our results did not support the claim that when mothers made an allegation of abuse and the father made an allegation of PA, she would be penalized by a loss of parenting time or custody. Our data supported the opposite result: Fathers, regardless of whether they were a known or alleged alienating parent, were more likely to lose custody of their children than mothers if they made an allegation of abuse about the mother. This result may reflect a backlash effect (Rudman & Phelan, 2008), such that fathers face social reprisals for behaving counterstereotypically by accusing mothers of being abusive because there are stereotypes that women are not abusive and that men cannot be abused (see Seelau & Seelau, 2005). As with the model tests for Hypothesis 1, parents who were found to be alienating their child(ren) from the other parent and who made an allegation of abuse toward them, regardless of their gender, were more likely to have a decrease in their parenting time or lose custody than were parents who were just accused of alienating their children.

It is interesting that almost one third of the cases involved the court's determining PA was an issue for a family, independent of whether another third party identified it as an issue. When a GAL or

custody evaluator identified PA as an issue, mothers were not more likely to lose or receive a decrease in custody of their children. Therefore, Hypothesis 4 was not supported.

Hypothesis 5 regarded when an allegation of sexual abuse plus another form of child abuse was made and one or both were founded. Meier et al. (2019) stated in their research paper that mothers were more likely to lose parenting time or custody if such a situation occurred. We identified only three cases out of the entire data set where both types of abuse claims were made about the (alleged) targeted parent and one or both of them was founded. The abusive parent was not given even partial custody in these three cases. Out of the 3.5 million reports of child maltreatment recorded in the United States each year, approximately 686,000 children were found to be victims of maltreatment, 78% of whom were neglected and 11% were victims of some other form of maltreatment (e.g., emotional abuse; Administration on Children, Youth and Families & Administration for Children and Families, 2013). Meier et al. excluded neglect and emotional abuse of children cases from their database so as to include only child physical and sexual abuse cases. These cases represent only 18% and 9% of all child maltreatment cases, respectively, in the United States (Administration on Children, Youth and Families & Administration for Children and Families, 2013), so it is not surprising that we identified only three cases in our data set that indicated the parent had a finding of child abuse and/or sexual abuse. The prevalence of child and sexual abuse cases in the general population calls to question the sample size tested in Meier et al.'s model for this hypothesis.

We are concerned about how allegations of abuse were "credited" by Meier et al. (2019, p. 8) due to how unclear the coding descriptions were in the research paper. According to our review of their user manual, which was made publicly available at the end of August 2020, her team coded protection orders and arrests as evidence of guilt despite the fact that such allegations could later be proven false or unsubstantiated. We ultimately tested Hypothesis 5 using *any* founded child abuse claim (including neglect and child emotional abuse) as our selection criteria for cases because it would not be good for any child to be placed in the custody of a parent who is abusing them in any way. There were only 77 cases where such a finding was definitively made and referenced in the report, and most cases where allegations of abuse were made were not founded. Due to the small sample size of cases that met this model test criteria, the fit for the models was not good and so we could not ultimately test the hypothesis.

Due to a shared concern about protecting children from abuse, all cases in which a child was placed with a parent found to have been abusive in any way when the other parent had been found to be alienating the child were investigated more closely (16 total cases, 11 with "abusive" fathers, three with "abusive" mothers, and two where both had findings of abuse). The second author and his legal research assistant investigated each of the cases by contacting the attorneys for the person said to be abusive in each case. The results of this investigation indicate that courts were not placing children in the custody of parents who were actively abusive toward the other parent or child. The claims of abuse were not ignored—they were deliberated with great scrutiny by multiple parties and institutions. When the children were placed with the parent who had a past finding of abuse, it was determined the alleged abuse occurred so far in the past that the children were not at risk, the parent had taken the required steps to remediate the problem, the alienating parent's behaviors were so egregious that

the placement with the other parent was the safer alternative, or that the allegation was later deemed false. A memo describing the results of our investigation of these cases is available on the OSF (https://osf.io/j9bh5/?view_only=fc6a8223317745e59fc7058543185058). After attempting to test this hypothesis, we question the sample size and statistical model tests conducted by Meier et al. (2019), as well as their argument, based on their findings, that judges are taking children away from protective mothers and placing their children in the custody of abusive fathers. Our empirical evidence did not support this conjecture.

The last hypothesis tested was that the more unfounded allegations made about a father by a mother, the more likely he was to lose parenting time or all custody than when a father made unfounded allegations about the mother. We did not find support for this hypothesis. Our results indicate, however, that fathers were more likely than mothers to have a decrease than increase in their custodial time with their child(ren), and the more unfounded claims of abuse that were made against a parent, the more likely they were to get a decrease than increase in their parenting time. This result provides support to what some professionals have called a weapon, or “silver bullet” in child custody disputes: Making an unfounded or false allegation of abuse can be an effective tool for parents (of any gender) to obtain more custody of their children (e.g., Lowenstein, 2012, p. 194). It is interesting that when a parent who was known to be alienating their child(ren) made unfounded claims of abuse, they were more likely to lose parenting time than were those who were accused. This result indicates that courts were able to discern when unfounded allegations were being used by parents to alienate children from the other parent. If the parent was found to have alienated rather than merely accused of having alienated their children, their use of unfounded allegations of abuse was not effective in gaining more custody; rather, they were more likely to lose parenting time.

Our sample was representative of a wide variety of cases where PA was alleged at the appellate level, not just “paradigm” cases that Meier et al. (2019, p. 13) selected, making our study high in external validity and generalizability. That said, most trial-level cases are not appealed, so a limitation of the current study is that it is difficult to determine whether the findings are generalizable to what occurs at the trial level. The purpose of our study was to test Meier et al.’s research paper findings, which were based largely on appellate cases, so we restricted our sample to such cases. In the United States, trial-level courts are not required to publish their rulings, so it was not possible to obtain a representative sample of trial-level cases to test our hypotheses. We are currently collecting data from trial-level cases in Canada, where such detailed reports are publicly available, to determine whether our findings replicate at that level.

Although about 75% of the appellate cases where PA was found to have occurred involved mothers as the alienating parent (Lorandos, 2020), it is not clear what the source of this gender disparity is and whether it also exists at the trial level. The financial and emotional costs associated with judicial appeals are a great deterrent for many parents, and there may also be gender biases in assessment and identification. Research examining trial-level cases would be helpful in examining whether such gender disparities exist there. We identified only one case in our database where both parents of the child(ren) were the same gender. As more cases involving same-gender parents are heard in the appellate- and trial-level courts, it will be important to examine how judicial decisions regarding child custody are made when there have been allegations of PA.

There was also considerable variability in the level of detail provided in the appellate reports, particularly related to allegations of abuse. We were conservative in coding whether an allegation was deemed unfounded, in that an allegation was entered as unfounded, unsubstantiated, or false only if the report explicitly stated this to be the case. At the same time, we were liberal in coding whether a parent was “found” to be abusive, in that they were coded as such if they had even one founded allegation, which is a highly discretionary and unconstrained conclusion drawn by investigators (e.g., CPS; Coleman et al., 2010) and can be influenced by their personal orientations (Ashton, 2004). Had more detail been available in the appellate reports, it is possible that the codes for the allegations may have been different, so it will be important to replicate our findings with cases in which more details are provided, such as in trial-level reports.

In conclusion, after we transparently and rigorously tested six preregistered hypotheses, our results soundly disconfirmed nearly all the findings we tested from Meier et al.’s (2019) report or discovered the findings to be in the opposite direction of that claimed by the authors. We identified 30 very concerning conceptual, methodological, and statistical issues with Meier et al.’s study, and when asked to provide us with appendices and statistical output to evaluate her conclusions, she refused to provide them; questioned the inquirer about who they worked for and what types of clients they represented (mothers or fathers); and referred them to a national archive for the material, where much of the material was still not available at the time of this writing. This response raises concerns about the validity of Meier et al.’s data and the conclusions that can be drawn from it. Our review of the partial materials now accessible on the archive website for the study also raised more, rather than allayed, our concerns.

Unfortunately, Meier et al. (2019) have been extensively disseminating their findings to media and policymakers, have failed to discuss the limitations of their report, have been presenting their findings as definitive proof (e.g., Bonessi, 2019; Johnston, 2007; Schmidt, 2019), and have been communicating to the public that abused mothers are losing custody of children to abusive fathers. For example, a September 27, 2020, Canadian national news outlet cited Meier et al.’s paper with the headline “Survivors of Domestic Abuse Told to Keep Quiet About It in Court or Risk Jeopardizing Child Custody” (Carmen, 2020). Such messaging propagates stereotypes about men being abusive and women being victims, both of which were not supported in our study.

Meier et al.’s (2019) call to action in their paper also appears to be influencing advocacy groups. Recently, advocates have been trying to draft legislation that prohibits evidence related to PA being used in court (Warshak, 2020). In the spring of 2020, the first author learned from an inside source of a domestic violence group (Moms Fight Back) about the language of a bill being pushed by advocacy groups around the United States. This bill was written such that it would create legislation requiring professionals to be taught about how “alienation theory” is improperly used to deny abuse and fuel misconceptions about “protective parent” and victim behavior and that professionals using the theory should be punished in ways such as losing their immunity, face criminal liability actions, and lose their professional licenses and accreditations (Anonymous, personal communication, March 2, 2020). Given the concerns we have raised about their study and our inability to find empirical support for any of the hypotheses we tested, we feel that the misuse of Meier et al.’s research findings is unethical. Further, this misuse has the potential to harm millions of parents and children, regardless of gender, who are being

alienated from each other by an alienating parent (Harman, Leder-Elder, & Biringer, 2019).

Independent replications; the use of open science practices; and strong, rigorous research methods are essential not only for the accumulation of reliable scientific evidence. These practices are essential for the development and modification of evidence-based policies and legislation. It can be very dangerous to develop policies and legislation based on one or a few research studies, particularly studies that are flawed and based on weak evidence drawn from the use of questionable research practices. Chris Chambers (2017) has stated that “malpractice in any field wastes precious public funding by pursuing lines of enquiry that may turn out to be misleading or bogus” (p. xiv). In fields of inquiry where there are concerns that ideological motivations drive research practices and create bias, we believe it is imperative that researchers utilize open science research practices in their work in order to be considered reliable. We followed these practices to the best of our abilities in the current study, and all of our research activities are documented and openly available to the public on the OSF (https://osf.io/j9bh5/?view_only=fc6a8223317745e59fc7058543185058). Our hope is that other researchers in this area will do or be expected to do the same.

Certainly, there are parents who claim they are being alienated from a child when they are not, just as there are parents who claim they are being abused when they are not. Some professionals working with families make false positive findings of PA (Warshak, 2020), and domestic violence or child abuse may be missed or overreported due to a poor understanding of the problems and insufficient efforts to reduce biases. Fortunately, our findings indicate that appellate courts do not take all claims of PA or domestic violence or child abuse at face value. These claims are evaluated based on the evidence presented, and parents who were found to have alienated their children were more likely to get a decrease in or lose custody of their children, regardless of gender. We did not find that abusive parents were likely to gain or obtain custody. No system is perfect. Yet we are optimistic, based on the data reported here, that decision-makers can discern when children are at risk for family violence in the many forms it takes, including PA, and are implementing strategies to protect the best interests of children.

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(Appendix follows)

Appendix

Codebook Descriptions

Table A1*Main Page*

Case no.	Sequential number assigned to the case (pdf file name assigned).
Trial-level motion(s)	List all motions at the trial level that were heard and led to the appeal (e.g., modification of parenting time, enforcement of parenting time, emergency motions to restrict parenting time).
Appellate reason	List all bases provided for reasons of the appeal (e.g., due process concerns, misapplication of law [specify the law]).
No. of abuse allegations toward the mother cited in case	Total number of allegations made about the mother. Count allegations made to multiple agencies (CPS, police) once if related to the same offense. If same-sex couple, label this as Parent 1.
No. of abuse allegations toward the father cited in case	Total number of allegations made about the father. Count allegations made to multiple agencies (CPS, police) once if related to the same offense. If same-sex couple, label this as Parent 2.
Party or parties who alleged or found PA	List all individuals who stated or found that PA was an issue in the case (e.g., a parent, therapist, custody evaluator, court personnel).
Basis for PA opinion	List specific details about what is provided in support of believing PA is an issue for the family for each party (above).
Basis for rejection of PA opinion	If PA was clearly described in the judgment as being unfounded, give details about this. If it is not described, enter n/a.
Custody change at trial level If yes:	Was custody changed because of the trial-level ruling (if described)? Describe the change (e.g., joint custody to primary custody to mother or father).
Custody change at appellate level If yes:	Was custody changed because of the appellate-level ruling (if described)? If the appellate ruling upholds the change at trial level, then this answer would be "no." Describe the change (e.g., joint custody to primary custody to mother or father).
Did a parent lose all custody of the child(ren)? If yes:	Yes or no Which parent lost all custody?
Winner	Which parent "won" the case? This is different from custody. It is just whether the parent won the appeal.

Note. CPS = Child Protective Services; PA = parental alienation; n/a = not applicable.

Table A2*Abuse Allegation Page Codes: One Page Filled Out for Each Accusation of Abuse*

Allegation no.	Enter sequentially, oldest to most recent (one page made for each accusation).
Date of allegation	Date (if provided), year, or enter "no date" if not available.
Date abuse was reported to have occurred	If known, indicate when the alleged abuse actually happened. A time frame may also have been reported.
Type of allegation	Domestic violence, child abuse, child sexual abuse, neglect (only those allegations made to an authority such as CPS).
Person(s) making allegation	List people who made the allegation (e.g., parent, child, anonymous call).
Who allegation was made to	List all parties to whom the allegation was made to (e.g., police, hospital, CPS, court only, a teacher).
Accused party or parties	List the accused party (or parties if multiple; parent, stepparent, grandparent) of the abuse.
Alleged victim(s)	List all alleged victims (e.g., other parent, children, extended family).
Details of "proof" of allegation	Describe what was used to support the allegation (e.g., picture of a bruise, child's disclosure).
Protection order If yes:	Was a protection order placed on the accused party? (yes or no) Protection order for which "victim"? For how long?
Arrest	Was the accused party arrested for the allegation? (yes or no)
Party or parties who investigated the allegation	Describe all who investigated the abuse allegation (e.g., detective, CPS worker).
Parenting time during investigation	What contact did the accused party/parties have with the child while being investigated? E.g., supervised visits, no contact, regular parenting time
Outcome of investigation	Describe what the outcome was: substantiated, unsubstantiated, false, other
Court involvement If yes:	Was the allegation brought to court (family or criminal)? Y/N What was the final judgement of the court regarding the allegation? Guilty/not-guilty/no information
If guilty: PA	Was parenting time restricted for the guilty parent? Y/N Was the allegation used to support a diagnosis of PA?

Note. CPS = Child Protective Services.

Received October 14, 2020
Revision received November 4, 2020
Accepted November 5, 2020 ■